



Embassy of the United States of America

Tokyo, Japan

March 23, 2026

Dear Prospective Quoters:

Subject: Request for Quotations (RFQ) Number 19JA8026Q0019
Bathroom Restoration Services

Enclosed is a Request for Quotations (RFQ) for Bathroom Restoration Services. If you would like to submit quotation, follow the instructions in Section L of the RFQ, complete the required portions of the attached document, and submit it to the email address shown on the Standard Form (SF) 1442 that follows this letter.

The U.S. Government intends to award an indefinite-delivery, indefinite-quantity (IDIQ) type contract to the responsible company submitting an acceptable quote at the lowest price. The U.S. Embassy Tokyo intends to award the contract based on initial quotations, without holding discussions, although we may hold discussions with companies in the competitive range if there is a need to do so.

1. Pre-quotation Conference and Site Visit:

(a) The Embassy intends to conduct a pre-quotation conference and walk-through at the site, which will be held at the following Date/Time and Location.

Date: **Tuesday, March 31, 2026 (Tuesday)**
Time: **From 10:00 a.m. to on/about 12:00 p.m. (Japan Standard Time)**
Location: **Meet at 9:50 a.m. in front of the West Gate** (previously known as Shirota Gordon Gate) of the U.S. Embassy housing compound, 2-1-1 Roppongi, Minato-ku, Tokyo 106-0032.

(b) Prospective quoters should contact Miyuki Mita via email at MitaMX@state.gov by **3:00 p.m., Friday, March 27, 2026 (JST)** and submit individual name(s) (limited to three people per company), company name/address, telephone/fax numbers, and email address to arrange entry to the compound.

NOTE: No entry request will be accepted after the specified date/time, regardless of whether or not the participant(s) hold(s) Embassy issued ID badge.

(c) Attendee(s) must present an identification (ID) card with a photo (e.g. driver's license, passport, etc.) as it is required for entering the compound.

2. Questions:

Following the conference, quoters may submit questions (in English) regarding this RFQ by **12:00 noon, Friday, April 3, 2026 (JST)** via email to MitaMX@state.gov. All questions will be consolidated, and one response document will be prepared and posted on the Embassy's website, the same website from where you obtained the solicitation documents.

NOTE: No questions will be accepted after the specified date/time.

3. Quotations:

Quotations are due by **11:00 a.m, Tuesday, April 14, 2026 (JST).** No quotations will be accepted after this date/time. Quotations must be in English and incomplete quotations will not be accepted.

Your quotation must be submitted electronically to Miyuki Mita via email to MitaMX@state.gov. The e-mail size must not exceed 15MB. If the e-mail size should exceed the 15MB, the submission must be made in separate e-mails less than 15MB each. After submission of quotation, quoters shall contact Miyuki Mita by phone (Office: 03-3224-5755 or Mobile: 090-1110-9320) or email to confirm the receipt of quotation.

4. Bonds: Performance and payment bonds are NOT required.

It is understood that no payment will be made for preparation and submission of your quotation.

Thank you in advance for your interest and your time in participating in the request for quotations process.

Sincerely,

Staff, Christopher (StaffCG@state.gov)
03/23/2026 04:36 GMT



Christopher G. Staff
Contracting Officer

Enclosure:

Request for Quotations No. 19JA8026Q0019

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO. 19JA8026Q0019	2. TYPE OF SOLICITATION [] SEALED BID (IFB) [✓] NEGOTIATED (RFQ)	3. DATE ISSUED March 23, 2026	PAGE OF PAGES 1 / 98
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IMPORTANT - The “offer” section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NO. PR15874168 / PR15863326	6. PROJECT NO.
7. ISSUED BY CODE Procurement/Contracting Office U.S. Embassy 1-10-5 Akasaka Minato-ku, Tokyo 107-8420, Japan			8. ADDRESS OFFER TO Miyuki Mita Email: MitaMX@state.gov Subject: RFQ 19JA8026Q0019
9. FOR INFORMATION CALL: ➔	A. NAME Miyuki Mita		B. TELEPHONE NO.(NO COLLECT CALLS) 03-3224-5755 / 090-1110-9320

SOLICITATION

NOTE: In sealed bid solicitations “offer” and “offeror” mean “bid” and “bidder.”

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS:

SECTION A: SOLICITATION, OFFER, AND AWARD*

**This is the Standard Form 1442 (SF-1442), i.e. pages 1 and 2 of this document.*

SECTION B: SUPPLIES OR SERVICES AND PRICES/COSTS

SECTION C: DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

SECTION D: PACKAGING AND MARKING

SECTION E: INSPECTION AND ACCEPTANCE

SECTION F: DELIVERIES OR PERFORMANCE

SECTION G: CONTRACT ADMINISTRATION DATA

SECTION H: SPECIAL CONTRACT REQUIREMENTS

SECTION I: CONTRACT CLAUSES

SECTION J: LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION K: REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

SECTION L: INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

SECTION M: EVALUATION FACTORS FOR AWARD

EXHIBIT J-1 – SAMPLE TASK ORDER FORM

EXHIBIT J-2 – HAZARD ASSESSMENT SHEET

11. The Contractor shall begin performance within three (3) working days after receipt of Task Order and complete (see Specified Time Table under subsection B.4.4) after work commencement.

This performance period is [✓]mandatory, []negotiable.

12A. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE OR PAYMENT BOND? [] YES, [✓] NO	12B. CALENDAR DAYS AFTER CONTRACT AWARD N/A
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13. ADDITIONAL SOLICITATION REQUIREMENTS:

- Quotations are due at the email address specified in Item 8 by **11:00 a.m., Tuesday, April 14, 2026 (JST)**. After submission of quotation, quoters shall contact Miyuki Mita by phone (Office: 03-3224-5755 or Mobile: 090-1110-9320) or email to confirm the receipt of quotation.
- An offer guarantee []is, [✓]is not required.
- All quotations are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.
- Quotations providing less than 120 calendar days for Government acceptance after the date offers/quotes are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE AND FAX NUMBERS (Include area code)
	16. REMITTANCE ADDRESS (Include only if different than Item 14)
CODE	FACILITY CODE
17. The offeror agrees to perform the work at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)	

AMOUNTS



¥0

18. The offeror agrees to furnish any required performance and payment bonds.**19. ACKNOWLEDGMENT OF AMENDMENTS***The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each.*

AMENDMENT NO.										
DATE										
20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)					20B. SIGNATURE					20C. OFFER DATE

AWARD (To be completed by Government)**21. ITEMS ACCEPTED**

Subsections B.3.3

22. AMOUNT ¥0	23. ACCOUNTING AND APPROPRIATION DATA Fiscal data will be provided on task orders placed against this IDIQ contract.	
24. SUBMIT ONE ORIGINAL INVOICE TO ADDRESS SHOWN IN	ITEM Subsection G.2.7	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()
26. ADMINISTERED BY CODE Procurement/Contracting Office U.S. Embassy 1-10-5 Akasaka Minato-ku, Tokyo 107-8420		27. PAYMENT WILL BE MADE BY Financial Management Center U.S. Embassy 1-10-5 Akasaka Minato-ku, Tokyo 107-8420

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return one copy to issuing office.) Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration slated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31A. NAME OF CONTRACTING OFFICER	
30B. SIGNATURE	30C. DATE	31B. UNITED STATES OF AMERICA	31C. AWARD DATE

SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

B.1 SCOPE OF SERVICES

The U.S. Embassy Tokyo requires a qualified construction services Contractor to perform all works and construction activities including furnishing all labor, material, and equipment required for branch piping repair services and associated refinishing services in bathrooms, powder rooms and laundry rooms in U.S. Government Apartment Compound (also known as Mitsui Housing Compound, or MHC). The Contractor shall replace deteriorated valves, branched piping, and fittings of Domestic Hot Water Supply and Cold-Water Supply with Contractor-furnished new ball valve and new header style polyethylene piping system, and the branched Vent pipes, all of which are inside the pipe shafts of dwelling units in Perry, Harris, Sirota Gordon Towers, and Temple and Mitsui Townhouses at the Mitsui Housing Compound as described below. After the pipe repair work, the Contractor shall install new bathtubs, lavatory cabinet and countertop, new wall panels, new floor tiles and associated accessories as described below in Sections B and C of this contract, and the exhibits in Section J.

B.2 TYPE OF CONTRACT

This is an indefinite-delivery, indefinite-quantity (IDIQ) type contract for obtaining bathroom restoration services. The Contractor shall furnish services according to task orders issued by the Contracting Officer. Verbal task orders maybe necessary for emergencies, however, they shall be issued in writing within three days after issuance of the verbal instructions. The task orders shall specify the location and type of work requested (see subsection B.4 ORDERNIG and the example in SECTION J, EXHIBIT J-1 SAMPLE TASK ORDER FORM).

The contract will be for a one-year period from the date specified in Notice to Proceed with four one-year options. For the effective year of the contract, the U.S. Government guarantees a minimum order of \$10,000 or its equivalent in Japanese Yen worth of services. The maximum amount of services ordered under the contract will not exceed \$345,000 in the effective contract year or its equivalent in Japanese Yen worth of services.

B.3 PRICES/COSTS

B.3.1 General.

The prices shall contain all work, including furnishing all labor, materials, equipment and services, unless otherwise specified in Subsection B.4.3 CONTENTS OF TASK RDERS. The prices listed below shall include all labor, materials, direct and indirect costs, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit.

NOTE TO VENDOR - Japanese Consumption Taxes

The U.S. Embassy Tokyo is exempt from Japanese consumption taxes; therefore, such taxes shall not be included in the price nor charged on invoices. After receipt of the Contractor's invoice, the Government will provide the Contractor with a signed Certificate of Tax Exemption Purchase for Foreign Establishments.

For non-Designated Stores, please visit the following link for registration:

(Ministry of Foreign Affairs of Japan)

Japanese: https://www.mofa.go.jp/mofaj/ms/po/page22_003420.html

English: https://www.mofa.go.jp/ms/po/page22e_000946.html

(National Tax Agency)

Japanese: <https://www.nta.go.jp/taxes/tetsuzuki/shinsei/annai/shohi/annai/23120184.htm>

B.3.2 Offers and Payment in U.S. Dollars:

U.S. firms are eligible to be paid in U.S. dollars. U.S. firms desiring to pay in U.S. dollars should commit their offer in U.S. dollars. A U.S. firm is defined as a company which operates as a corporation incorporate under the laws of a state within the United States.

Any firm that does not meet the above definition of U.S. firm shall submit its prices and receive payment in Japanese Yen.

B.3.3 PRICES

(starting on the date stated in the Notice to Proceed and continuing for a period of 12 months)

Description of Services	Unit of Measure	Price per Unit x	*Estimated Quantity =	Total Estimated Price
PRICEING OPTION A-1 – UNRENOVATED BATHROOMS				
Price for one set of pipe repair work and bathroom/powder room/laundry room refinish (for evaluation purposes only).				
Countertop Type 1 Bathroom floor sizes under 6.0 m ² with one set of lavatory sink	set	¥	10 sets	¥
Countertop Type 2 Bathroom floor sizes over 6.0 m ² with one or two sets of lavatory sink(s)	set	¥	10 sets	¥
Powder Room For any sizes	set	¥	5 sets	¥
Laundry Room For any sizes, possibly with associate closet	set	¥	10 sets	¥
Bathtub Replacement In accordance with C.3, C.15.1 & C.15.3.b, Bathtub & Drain Set are Government Furnished Property (GFP)	set	¥	10 sets	¥
Estimated Total (Option A) for Base Year:				¥

PRICEING OPTION A-2 – UNRENOVATED BATHROOMS, MITSUI TOWNHOUSE (MH) Price for one set of pipe repair work and bathroom/powder room/laundry room refinish (see C.15.2.f) (for evaluation purposes only).				
Countertop Type 1 Bathroom floor sizes under 6.0 m ² with one set of lavatory sink	set	¥	6 sets	¥
Countertop Type 2 Bathroom floor sizes over 6.0 m ² with one or two sets of lavatory sink(s)	set	¥	4 sets	¥
Powder Room For any sizes	set	¥	4 sets	¥
Laundry Room For any sizes, possibly with associated closet	set	¥	4 sets	¥
Bathtub Replacement In accordance with C.3, C.15.1 & C.15.3.b, Bathtub & Drain Set are Government Furnished Property (GFP)	set	¥	6 sets	¥
Estimated Total (Option A - MH) for Base Year:				¥

**PRICING OPTION A-2 is same as PRICING OPTION A-1 except the vent pipe system shall be fully replaced from the mechanical room to the wall vent grille.*

PRICEING OPTION B – UNRENOVATED BATHROOMS Price for one set of bathroom/powder room refinish only (no pipe repair work) (for evaluation purposes only).				
Countertop Type 1 Bathroom floor sizes under 6.0 m ² with one set of lavatory sink	set	¥	20 sets	¥
Countertop Type 2 Bathroom floor sizes over 6.0 m ² with one or two sets of lavatory sink(s)	set	¥	2 sets	¥
Powder Room For any sizes	set	¥	5 sets	¥
Bathtub Replacement In accordance with C.3, C.15.1 & C.15.3.b, Bathtub & Drain Set are Government Furnished Property (GFP)	set	¥	20 sets	¥
Estimated Total (Option B) for Base Year:				¥

**PRICING OPTION B is same as PRICING OPTION A-1 & A-2 except it does not include pipe replacement work.*

PRICEING OPTION C – RENOVATED BATHROOMS				
Price for one set of bathtub replacement in renovated bathrooms only (for evaluation purposes only).				
Bathtub Replacement In accordance with C.3, C.15.1 & C.15.3.b, Bathtub & Drain Set are Government Furnished Property (GFP)	set	¥	20 sets	¥
Estimated Total (Option C) for Base Year:				¥

**PRICING OPTION C – Bathtub replacement only – The Contractor shall pick up the new government furnished bathtub from the Temple parking storage space and load the new tub into the bathroom. Bathroom solid wood door needs to be removed temporary for loading work if necessary. Install the bathtub at the original location. Install the proper concrete support. Connect new drainpipe from new bathtub to pipe shaft. Install a proper tub cap with OPEN/CLOSE devise. The Contractor shall replace all dry boards, rusted metal stud and thermal insulations on 3 sides of the bathtub, install a Corian finish on the spacer plates between the bathtub and the wall if a space will be created between the bathtub and the tile floor. The wall panel shall be replaced if necessary to be able to install the new bathtub. Old bathtubs shall be disposed on by the Contractor.*

PRICEING OPTION D – FULL WALL/CEILING BOARD AND INSULATION REPLACEMENT				
Price for one set of bathtub replacement in renovated bathrooms only (for evaluation purposes only).				
Bathtub Replacement In accordance with C.3, C.15.1 & C.15.3.b, Bathtub & Drain Set are Government Furnished Property (GFP)	set	¥	20 sets	¥
Estimated Total (Option C) for Base Year:				¥

**PRICING OPTION D – FULL WALL/CEILING BOARD AND INSULATION REPLACEMENT*

- 1. The contractor shall remove all the board and ceiling in a bathroom including the wall panel around the bathtub, wall tiles if there is and the mirrors and dump outside the MHC under local laws.*
- 2. The contractor shall remove and re-install the bathroom sink, medicine cabinets, lighting fixtures, switches, outlets, sink, towel hangers, handlebars, Corian plates and all the water/plumbing fixtures in the bathrooms.*
- 3. The contractor shall remove all the insulation in between the dry boards in the bathrooms and dump outside the MHC under local laws.*
- 4. The contractor shall restore back the insulation using 50mm fiberglass insulation and the dry boards using anti-mold dry boards.*
- 5. The contractor shall restore back the finished putty work.*

ESTIMATED TOTAL PRICE for 12 MONTHS

OPTION A-1 – UNRENOVATED BATHROOMS	¥
OPTION A-2 – UNRENOVATED BATHROOM (Mitsui Townhouse – MH)	¥
OPTION B – UNRENOVATED BATHROOMS	¥
OPTION C – RENOVATED BATHROOMS (Bathtub replacement only)	¥
OPTION D – FULL WALL/CEILING BOARD AND INSULATION REPLACEMENT	¥
Estimated Grand Total for 12 Months:	¥

B.3.4 MINIMUM AND MAXIMUM AMOUNTS

During the Base Year of the contract, and during the option year that might be exercised, the United States Government (USG) shall place orders totaling a minimum of \$50,000. This reflects the contract minimum guarantee for the total five years. The amount of all orders, for base and all option years shall not exceed \$345,000. This reflects the contract maximum.

B.4 ORDERING - The U.S Government shall issue task orders for ordering all services under this contract. Task orders may be issued from the commencement date specified in the Notice to Proceed until the end of the "Period of Performance" (see subsection F.2 PERIOD OF PERFORMANCE). All task orders are subject to the terms and conditions of this contract. This contract shall take precedence in the event of conflict with any task order.

B.4.1 ISSUANCE OF TASK ORDERS - The Contracting Officer may issue task orders verbally but will be confirm them in writing within three (3) working days.

B.4.2 SURVEY OF PROPERTY - Before performing work, the Contractor shall survey the property and verify the work required against the task, to determine if any discrepancies exist. The Contractor shall be responsible for any errors that might have been avoided by such a survey/review. The Contractor shall immediately report any discrepancies to the Contracting Officer's Representative (COR) or the Contracting Officer and shall not begin work until such matters are resolved.

B.4.3 CONTENTS OF TASK ORDERS - The Contracting Officer shall issue task orders for bathroom restoration services on an as-needed basis. See Exhibit J-1 - SAMPLE TASK ORDER FORM. Task Orders shall include, but not limited to:

- a. Date of order;
- b. Contract and Task Order numbers;
- c. Description of services;
- d. Location of property to be replaced;
- e. Amount of work; and
- f. unit price and total amount;
- g. Service date;
- h. Survey or inspect the area before the work commences;
- i. Obtain approval, if appropriate, after the survey or inspection.

B.4.4 COMPLETION DATE –The maximum allowable time for the completion of work on each task order will be determined from the following specified time table.

Specified Time Table

<u>Price Option Type</u>	<u>Maximum Allowable Workdays</u>
Option A-1 (2-bathroom apartment)	18 calendar days plus 3 calendar days for every additional bathroom
Option A-2 (MH)(2-bathroom apartment)	24 calendar days plus 3 calendar days for every additional bathroom
Option B (2-bathroom apartment)	14 calendar days plus 3 calendar days for every additional bathroom
Option C (renovated bathrooms)	12 calendar days
Option D (full wall/ceiling board and insulation replacement)	20 calendar days

The time period specified above may be shortened if mutually agreed to by the contractor and the U.S. Government.

The completion date is fixed and may be extended only by a written modification signed by the Contracting Officer.

SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

C.1 INTRODUCTION

C.1.1 GENERAL - The U.S. Government requires a bathroom restoration service contractor to perform task orders on the U.S. Embassy housing compound in Tokyo, Japan (also known as Mitsui Housing Compound or MHC). The Contractor shall furnish managerial, administrative and direct operational personnel to accomplish all work as required.

C.1.2 DESIGNATED REPRESENTATIVE - The Contractor shall designate a representative who shall supervise the Contractor's workforce and be the Contractor's liaison with the U.S. Government. The designated representative shall be located on site in an office designated by the Contracting Officer during normal working hours (see Section F.8 WORKING HOURS) and shall have supervision as its sole function during the times while on duty. The Contractor's employees shall be on site only for contractual duties and not for any other business or purposes.

C.1.3 PERSONNEL - The Contractor shall be responsible for providing a qualified work force capable of providing the services specified in this contract. The Contractor shall insure that all personnel employed in the performance of this contract are qualified and possess the necessary licenses required in their respective trades. (see Sub-Section L.4.2 (6), Experience and Past Performance of the solicitation and L.4.2 (d)(8), Licenses and Permits). The Contractor shall ensure adequate staffing levels to safely perform the work and maintain continuous supervision during all activities.

C.1.4 CHEMICAL SAFETY AND HAZARD COMMUNICATION – The Contractor shall comply with the U.S. Mission to Japan Hazardous Communication Program Policy No. 2025-005. Prior to commencing work, the Contractor shall submit all anticipated chemical hazards, associate mitigation strategies, and Material Safety Data Sheets (MSDS) for review and approval by the Contracting Officer's Representative (COR). No chemical shall be introduced or used without express written approval from the COR. Safety documentation shall be reviewed and approved prior to mobilization, and the Contractor shall maintain continuous vigilance to protect health and safety throughout execution. (See also Section C.7 for hazardous materials submittal requirements.)

C.1.5 OCCUPIED SPACE SENSITIVITY AND CONDUCT – Work may occur in actively occupied residential or operational environments. The Contractor shall take all reasonable and proactive steps to preserve comfort, privacy and daily continuity for building occupants. Disruptions – including noise, dust, odor and restricted access – shall be minimized through thoughtful scheduling and coordination with facility personnel. The Contractor shall implement appropriate dust-control measures, including containment barriers and HEPA-equipped vacuums, to prevent migration of dust into adjacent occupied areas. The Contractor shall maintain a professional and courteous presence at all times, recognizing that respectful interaction and attention to details are essential to protecting the Government spaces and the well-being occupants.

C.1.6 NOISE MANAGEMENT AND ACOUSTIC COMPLIANCE – The Contractor shall implement noise-mitigation measures to ensure work activities remain within sound thresholds appropriate to the facility type. In residential or sensitive areas, sound levels shall not exceed 45 dB without explicit written authorization. The Contractor's Safety Plan shall define methods to limit acoustic impact, including the use of dampening equipment, barriers and scheduling adjustments. When noise-producing activities are unavoidable, the Contractor shall provide advance written notice to facility management and affected occupants and coordinate any required accommodations.

C.1.7 SAFETY – The Contractor shall comply with all applicable occupational safety and health laws, regulations and standards in Japan, as well as the U.S. Department of State requirements. The Contractor shall establish and maintain a safety program to protect the health and safety of its employees, the U.S. Government personnel and building occupants.

The Contractor shall ensure that all work areas are maintained in a safe condition. Tools, equipment and materials shall be used and stored in a manner that prevents hazards. Work shall not create unsafe conditions for occupants or interfere with emergency egress routes.

The Contractor shall furnish and maintain all personal protective equipment (PPE), including specialized protective gear such as arc rated clothing, fall arrest systems and respiratory protection, as required by applicable safety standards and the nature of the work performed. The Contractor shall ensure PPE is properly fitted, maintained and used by its employees. The Government furnished equipment will be provided only where specifically identified by the COR.

For any work involving elevated risk to personnel or facilities including but not limited to scaffolding, working at heights, welding, confined space entry, hot work or other activities identified by the COR, the Contractor shall submit proposed safety measures in advance. The Contractor shall not proceed with such work until the COR has reviewed and approved the safety measures. This requirement is in accordance with DOSAR 652.23670, Additional Safety Measures.

The Contractor shall immediately report to the COR any accidents, injuries or unsafe conditions observed during BPA performance. The Contractor shall cooperate fully in any investigation of safety incidents.

C. 2 SCOPE OF SERVICES

C.2.1 GENERAL - The Contractor shall provide all labor, tools, equipment, transportation, materials, supervision, and services, unless otherwise specified, to complete the work required herein. All the work and procedures in the contract shall be performed in conformity to the specifications. All local labor standards for occupational safety and health apply to this contract.

C.2.2 SCOPE OF WORK - The Contractor shall provide personnel, supplies and equipment for branch piping repair services and associated refinishing services in bathrooms, powder rooms and laundry rooms for the U.S. Embassy Housing Compound in Tokyo, Japan (also known as Mitsui Housing Compound, or MHC). The Contractor shall replace deteriorated valves, branched piping, and fittings of Domestic Hot Water Supply and Cold-Water Supply with Contractor-furnished new ball valve and new header style polyethylene piping system, and the branched Vent pipes, all of which are inside the pipe shafts of dwelling units in Perry, Harris, Sirota Gordon Towers, and Temple and Mitsui Townhouses at the Mitsui Housing Compound as described below. After the pipe repair work, the Contractor shall install new bathtubs, lavatory cabinet and countertop, new wall panels, new floor tiles and associated accessories in accordance with the following Statement of Work.

C.2.3 WORK SITE - The work site shall be in the apartment units of Perry, Harris Sirota Gordon Towers and Temple and Townhouses located in the Mitsui Housing Compound, 2-1-1 Roppongi, Minato-ku, Tokyo 106-0032.

C.2.4 TECHNICAL STANDARD - All work and procedure shall meet the local labor standards for occupational safety and health and shall be accomplished in conformance with the Water Works Standard Specification of Japan Water Works Association (JWWA), Heating, Air-conditioning and Sanitary Standards (HASS), established by the Society of Heating, Air-conditioning and the Sanitary Engineering of Japan (SHASE).

C.3 MATERIALS

C.3.1 GOVERNMENT FURNISHED PROPERTY (GFP)

Bathtubs and drain set with the following specifications will be provided by the U.S. Government for incorporation into the work by the Contractor:

- a. American Standard PRINCETON Model Bathtubs Model No.: 2392 for left drain and,
- b. American Standard PRINCETON Model Bathtubs Model No.: 2393 for right drain or equivalent model bathtubs. Model Sample of the bathtubs are available.
- c. Drain set of Brand: Kohler, Model: K-11660-CP, Series: SWIFLO, Color: Brass /Polished Chrome or equivalent model. The brass pipe of USG provided drain set may be short in length. The Contractor shall extend the drain pipe by connecting an extension pipe of the same material or equivalent. The extension pipe shall be connected properly and safety. The Contractor shall perform leak test on the drain connection. Sample of the drain set is available.
- d. Ceiling lights and Ground Fault Circuit Interrppter (GFCI) outlets – a wall AC outlet with built-in circuit breaker.

C.3.2 Contractor shall furnish all other materials that are necessary to accomplish the required services in this contract. All materials shall be new and compatible with the existing facility and used in accordance with original design and manufacturer's intent.

C.3.3 All work and procedures and shall meet or exceed the local labor standards for occupational safety and health and shall be accomplished in conformance with the Japanese Industrial Standards (JIS), the Japan Water Work Association (JWWA) and the Sanitary Engineering of Japan (SHASE).

C.3.4 Thermal Insulation and Gasket materials shall be "Asbestos Free."

C.3.5 Paint and primer materials that contain lead over 0.06% by weight of nonvolatile content, or zinc-chromate or strontium-chromate shall not be used.

C.4 PROTECTION OF WORK AND CLEAN UP

C.4.1 Work Protection - The Contractor shall provide and maintain adequate protection on all work and shall insure that it is continuously protected and secured so as to prevent any accident or damage to the adjacent property and/or personnel, until completion of the contract and final acceptance by the Contracting Officer's Representative. The Contractor shall further be responsible for the proper care and protection of all materials and equipment/tools that are delivered to the work site throughout the contracted work. Any damages to the existing Government property resulting from contractor's performance, shall be repaired or replaced in an approved manner to its original condition at Contractor's expense.

C.4.2 Cleaning - On completion of the services, the Contractor shall thoroughly clean the entire work area in broom-clean conditions prior to turnover to the U.S. Government.

C.4.3 Debris Disposal - The Contractor shall always keep the work site neat and clean. During the work, debris shall not be allowed to spread unnecessarily into adjacent areas nor accumulate in the work area itself. At the end of each workday and/or at the completion of the job, all such debris, excess materials, removed items, and parts shall be cleaned up and set aside to an approved location and shall be properly disposed of outside the Mitsui Housing Compound in accordance with the applicable local codes, for industrial waste disposal.

C.5 SCHEDULE OF WORK

The work shall be done during the residences' vacancy period/make-ready cycle. The vacancy period/make-ready cycle or schedule may change based on the departure schedule of the residents. In those cases, the contractor shall adjust their schedule. Prior to commencement of work, the Contractor

shall submit a work plan & progress schedule, setting forth date, time, description of work, list of personnel and any other information required by the Contracting Officer's Representative (COR) for approval. The work shall be scheduled in a manner to minimize the effect to the neighbors where access to their residences is necessary.

C.6 WORKING HOURS

The Contractor shall arrange its work schedule during the hours between 08:30 – 17:30, Monday through Friday except Japanese/American Holidays. Should the Contractor need to work in the premises other than the hours specified herein, the Contractor shall submit a written request for any changes of the schedule to the COR 24 hours advance for approval (see also Sub-Section F.8 of the solicitation).

C.7 HAZARDOUS MATERIALS

The Contractor shall provide the Contracting Officer's Representative (COR) a hazardous material (HM) inventory and material safety data sheets (MSDS) in English before such HM comes to the work site if such material are to be brought to the job sites or used under this contract.

C.8 CONTRACTOR'S SUBMITTAL

C.8.1 Safety Plan - The Contractor shall submit a safety plan report prior to starting the services.

C.8.2 Product Data - The Contractor shall submit a catalog data with product specifications of the new pipe and fitting materials, valves, thermal insulation materials, and a shop drawing of the proposed layout of the piping installation to the COR for approval prior to commencement of the work.

C.8.3 Report - Upon work completion, the Contractor shall submit two (2) sets of reports consisting of end-product data, as-built drawing, and sufficient photographs of before, during, and after completion of the work.

C.8.4 Unforeseen Conditions - If the Contractor finds an unusual condition during the work performance, the Contractor shall immediately report the status, its causes and countermeasures, followed with necessary cost estimates to the COR.

C.8.5 Hazard Assessment and Safety

The COR or COR's designee will review and identify the safety, health and environmental requirements based on the hazards anticipated for the construction project. The Contractor shall fill in the attached Hazard Assessment Sheet (see Exhibit J-2) and submit to the A/POSHO for approval. It is noted that the Contractor shall fully understand and implement the Hazard Assessment. Based on the hazard assessment, the Contractor shall put necessary controls in place for safety, health and environmental requirements from the start through the completion of the contract, at no additional cost to the U.S. Government. The COR or COR's designee will inspect the site regularly and inform Contractors of any non-compliance with safety requirements. Non-conformance with this requirement is subject to work suspension, which may lead to contract termination. The Contractor shall follow all U.S. Government and Japanese safety laws. The Contractor shall provide a list of safety items being used; the type of training that has been given on these items and to have a training session with the Embassy's Safety Coordinator prior to the commencement of work.

C.9 TESTING AND OPERATION

Leak check and operation test must be performed accordingly, upon completion of the installation work. This will include the Hot Water Storage Tanks operation of Cold-Water supply and Hot Water circulation. The Contractor shall ensure all air and rusty water is purged out from the system.

C.10 GUARANTEE

The Contractor shall guarantee all the work completed under this contract against any defects resulting from the Contractor's performance and/or Contractor furnished materials for the period of one (1) year after final inspection and acceptance of the work by the COR. During the guarantee period of one (1) year, any found defects attributed to the Contractor's responsibilities shall be corrected by the Contractor accordingly at no additional cost to the Government.

C.11 MAJOR REPAIRS

The Contractor shall immediately inform the COR or the Embassy Facility Management Office of major safety problems and the need for major and/or specialized repairs to any part of the serviced area of the residential unit. The Contractor shall also inform the COR of a major problem in the residential unit in a system or area that is not being serviced as well. The Contractor shall be liable for the costs for any damage that occurs as a result of the Contractor's negligence in its duty to inform the COR. The Contractor shall make efforts to minimize such trouble or damage in systems or areas being serviced until proper corrective action can be taken.

Major and specialized repairs shall be carried out by the Government, independent of this contract.

C.12 CONTRACTOR PERSONNEL

All personnel assigned by the Contractor for the performance of the respective services shall be regular employees of the Contractor, and shall be supervised by the Contractor. There shall be no employer-employee relationship between the U.S. Government and the personnel. Subcontractors may only be employed with the express written consent of the Contracting Officer.

C.13 QUALITY ASSURANCE

The Contractor shall institute an appropriate inspection system including:

- (a) Develop and maintain checklists of duties to be carried out,
- (b) Ensure these duties are carried out by the supervisory staff and senior employees, and
- (c) Perform inspections at all work locations to determine whether the various services are being performed according to the contract requirements.

The Contractor shall provide copies of all inspection reports to the COR.

The Contractor shall promptly correct and improve any shortcomings and/or substandard conditions noted in such inspections. The Contractor shall to the attention of the Contracting Officer or COR, for disposition, any conditions beyond the responsibility of the Contractor.

C.14 INSPECTION BY GOVERNMENT

The services performed and the supplies furnished for this contract will be inspected from time to time by the COR, or his/her authorized representatives, to determine that all work is being performed in a satisfactory manner, and that all supplies are of acceptable quality and standards.

The Contractor shall be responsible for any corrective action at no additional cost to the U.S. Government (see sub-Section E.1, FAR 52.246-12 of the solicitation), within the scope of this contract, which may be required by the Contracting Officer as a result of such inspection.

C.15 TECHNICAL PROVISIONS FOR PIPE RENOVATION

C.15.1 Removal Work:

a. Removal work in Bathrooms:

- Remove and dispose of sink, faucet, countertop and cabinet.
- Remove existing toilet but save for restoration.
- Remove and dispose of all ceramic wall tiles and plywood that formed a counter space along the bathtub edges.
- Remove and dispose of baseboard tiles and ceramic floor tiles.
- Remove and dispose of lighting fixture.
- Remove and dispose of pipe hanger for shower curtain, medicine cabinet, towel hangers.
- Remove the old bathtub and associated drainpipe connected to the main pipe in the pipe shaft and dispose outside the MHC.
- Remove all old drywall and expose metal studs.
- Replace rusted metal studs.
- Remove and dispose of old glass wool insulation inside the bathroom.
- Remove and dispose of full-length mirror.
- Remove the dry board ceiling and dispose.

b. Removal work in powder rooms:

- Remove and dispose of sink, faucet, countertop and cabinet.
- Remove existing toilet but save for restoration.
- Remove and dispose of baseboard tiles and ceramic floor tiles.
- Remove and dispose of lighting fixture.
- Remove and dispose of towel hangers.
- Remove and dispose of full-length mirror.
- Remove dry wall from back of sink to back of toilet.
- Remove old drywall and expose metal studs. The Contractor shall apply anti-mold grow spray against exposed metal studs and other existing drywall in the removed areas.
- Remove and dispose of old glass wool insulation inside the bathroom.



c. Removal work in laundry rooms:

The Contractor shall remove dry wall in the laundry/utility room and/or inside the closet to gain access to the pipe shaft. (The other side of the plumbing shaft will be the kitchen.)

The Contractor shall temporarily remove wall cabinet, dryer's duct, power outlets and water valves and demolish the wall along the pipe shaft in the Utility room and possibly the walls outside the Utility room. Steel studs can be remained if the plumbing workspace is adequately established.

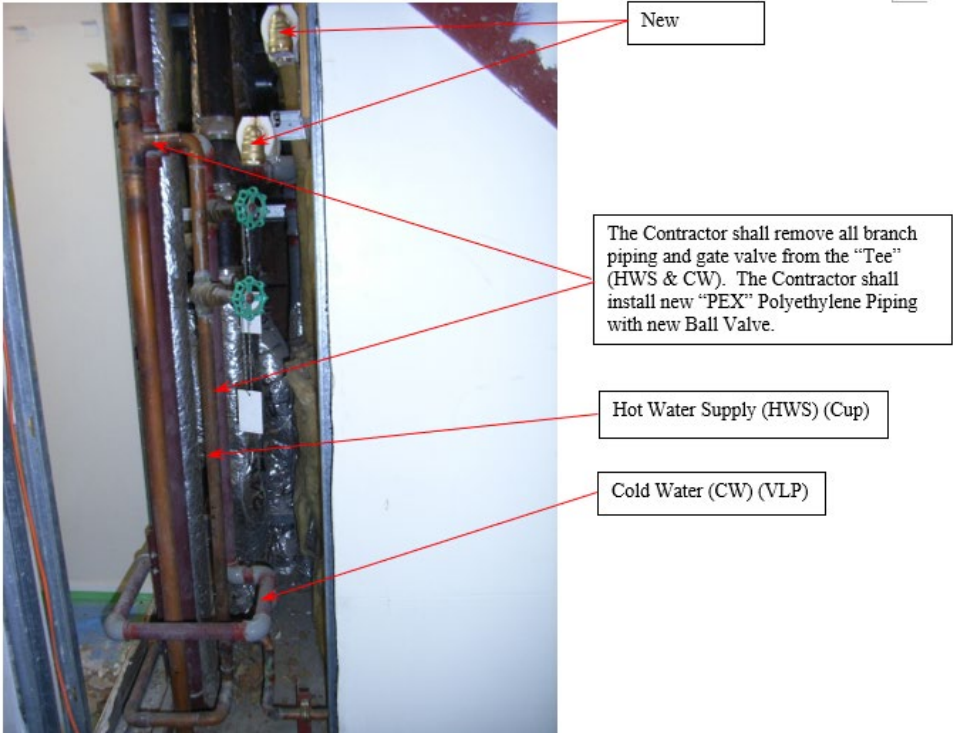
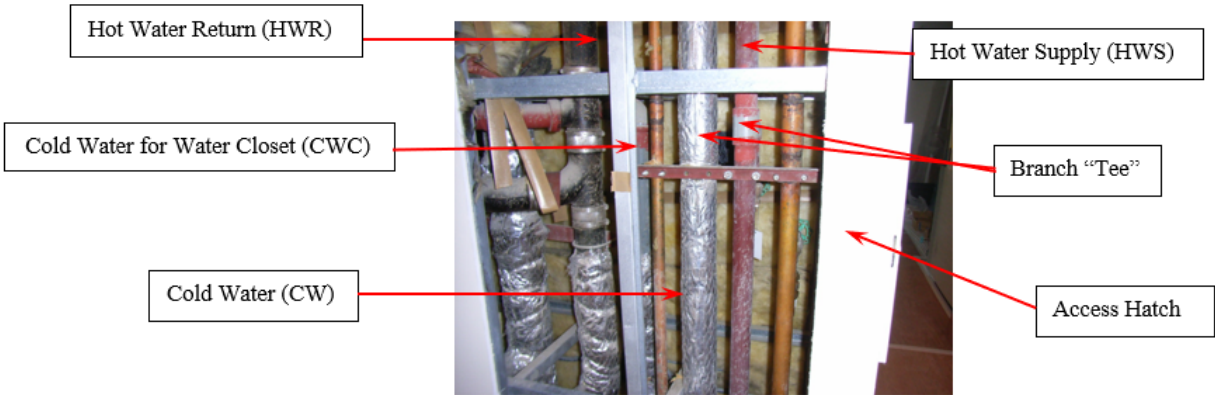


C.15.2. Pipe Replacement

a. Hot Water Piping (existing pipe type “CUP”). The Contractor shall secure the Hot Water Supply (HWS) and Hot Water Return (HWR) pipe in the specific pipe shaft riser by closing the ball valves located in the ceiling of the basement 1F level and drain out the hot water from the drain valves. This applies to the affected rooms on the Low Zone (1F to 8F). For High Zone (9F to 14F), the valve location will be either in the hallway ceiling or the ceiling inside the dwelling unit located in the 8F. Draining the hot water for the piping worked on High Zone shall be performed from the hallway drain valves.



The Contractor shall cut and remove the branch HWS copper pipe together with the existing Gate Valve, from the branch “Tee” on the affected apartment floor. The vertical HWR copper pipe shall remain as is. (Refer to the below). Care shall be taken from any water damage.



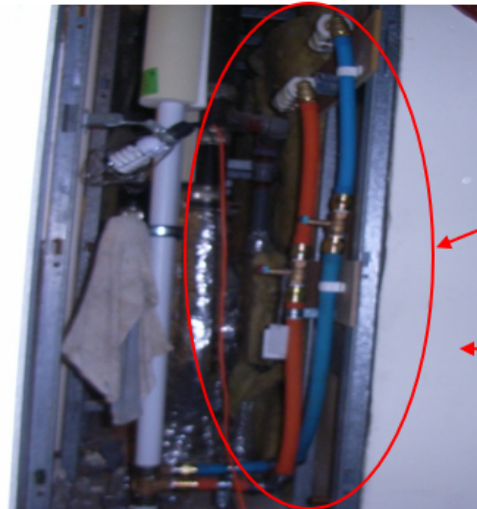


Cold Water for Water Closet (CWC): The Contractor shall remove all Branch Pipe and Gate Valve and install a plug at the "Tee."

b. Cold Water Supply (exist pipe type "VLP"). The Contractor shall secure the Cold Water (CW) and drain out the water by same procedure as HWS & HWR piping. The Contractor shall cut and remove the branch CW pipe together with the existing Gate Valve, from the branch "Tee" on the affected apartment floor. The Contractor shall take care from any water damage.

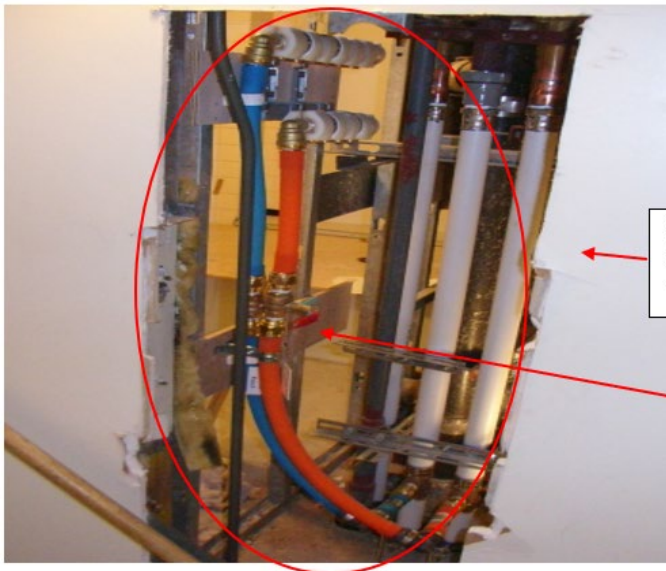
c. Cold Water for Water Closet (CWC) Branched Piping. The Contractor shall secure and drain out the water in the vertical riser pipe by the same practical method as above. The Contractor shall entirely remove the existing branched CWC piping (ELP) and the existing Gate Valve for toilet flushing water, from the branched Tee. A brass plug shall be installed at the Tee of the vertical riser pipe, which will remain. The new CW branch pipe from the header will be the new water source for the Toilet Flush Water. The Contractor shall replace the angle/stop valve for the toilet water supply with a new Japanese standard stop valve.

d. New Header System and Branch Piping Installation for HWS, CW, and CWC. The Contractor shall replace all existing branch pipes with DOUBLE LOCK JOINT (WL/WH Series) Header Piping System using PEX polyethylene tubing/pipe with appropriate protection jacket/insulation, from ONDA Seisakusho or equivalent. A manufacturer recommended insulation material shall be installed for the tube pipes, headers and fittings. This new tube piping shall be installed and supply Cold & Hot water for the lavatory, toilet, shower, laundry, kitchen sinks and for dishwashers. The Contractor shall install a new Ball Valve – 10K, JIS B0203 Threaded Ends, Full Bore Type, KITZ Keepaloy (lead-free) Type, T-Ball Series, Model TLNF or equivalent, before the new Header, for the isolation of the new branched piping. Size of the valve shall match the existing size. The handle for the ball valve shall be color coded (RED for Hot Water). The Contractor shall replace all the associated stop/angle valves for the lavatory, toilet, laundry washer, dishwasher, and kitchen sink faucets. The stop/angle valve for lavatory, toilet and kitchen sink shall be **JV22J-13** from San-Ei or equivalent. The stop valve for laundry washer and dishwasher shall be **V231AG-20** from San-Ei or equivalent. The Contractor shall use the manufactured fittings, headers, and pipe with jacket/insulation on both Hot Water Supply and Cold-Water Supply. The new pipe size shall be **20A** for the header incoming and **13A** for each branch piping; however, the sizes shall be verified by the Contractor based upon the drawing, and shall calculate and design the piping system for proper water flow/volume required for the quantity of plumbing fixtures, etc.. The new ball valves and the headers for HWS and CW shall be properly marked and located near the access inspection hatch. Each branched piping shall also be labeled as to where it is supplied. Installation method/procedure shall be in strict accordance with the manufacturer's instruction, and must be performed only by a certified plumber who has well experiences of installing these products. The Contractor shall ensure to install a fire-proofing material on all pipes penetrating the slab inside the pipe riser shaft. Such material shall be heat expansion fire block type (FIBLOCK) manufactured by SEKISUI or its equivalent.



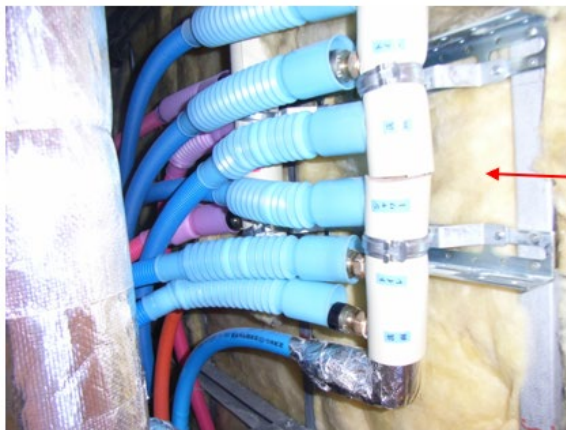
New Branched Main Supply,
Polyethylene Piping joint to new
Ball Valve and Header.

1F Pipe Shaft between laundry and kitchen.
This opening was made inside the closet
under the stair.



2F Pipe Shaft between the two bathrooms.
This opening was made from the existing
access hatch on the wall of staircase.

New Branched Main Supply,
Polyethylene Piping joint to new
Ball Valve and Header.



This is a sample photo for typical
header piping system installation.

e. Vent Pipe Replacement for Drain - Perry, Harris, Sirota Gordon Towers & Temple Townhouses).
The Contractor shall replace the existing branch vent pipe and fittings (ELP) with a PVC pipe and fittings, ELSON Fireproof VP Pipe (FS-VP) of SEKISUI or equivalent. Sizes shall be the same as existing vent pipe. The joint for new PVC branch vent pipe and existing Main Vent Pipe (CIP – Cast Iron Pipe) shall be made by use of flexible rubber coupling/joint tightened with stainless steel band clamp (ACHILLES made or equal), or other type jointing material, such as MD or LA mechanical flange joint, whichever is feasible.



f. Vent Pipe Replacement for Drain - Mitsui Townhouses.

The Contractor shall fully replace the vent pipe from the basement mechanical room to the end pipe on the 3F roof. Unlike in the Perry, Harris, Sirota Gordon Towers and the Temple Townhouses apartment units, there is no main vertical vent pipe inside the pipe shaft for Mitsui Townhouses. Instead, the vent pipe runs from the basement mechanical room to the kitchen, bathrooms, laundry room and ends on the 3F roof.

g. The Contractor shall install appropriate supports at proper intervals for all the new piping system.

C.15.3 Restoration and Refinish in Bathroom

a. HWS, CW, and CWC Main Riser Pipe. The Contractor shall restore the water supply for the main riser pipes as soon as the new branch main pipe from the Tee and the new isolation Ball Valves are installed in the affected pipe shafts. The branch piping can be worked while the ball valves at the branched 'Teas' are closed.

b. Bathtub. The Contractor shall pick up the new government furnished bathtub from the Temple parking storage space and load the new tub into the bathroom. Bathroom solid wood door needs to be removed temporary for loading work if necessary. Install the tub at the original location. Install the proper concrete support. Connect new drainpipe from new tub to pipe shaft. Install a proper tub cap with OPEN/CLOSE devise.

The contractor shall replace all dry boards and thermal insulations around the bathtub, install a Corian finish on the spacer plate between the bathtub and the wall and if a space will be created between the bathtub and the floor.

c. Drywall. The Contractor shall install anti-mold type drywall to close the pipe shaft. All other dry boards in the bathroom shall be anti-mold type dry board. The Contractor shall make sure to furnish the same drywall thickness as the existing. Thermal insulation on the walls inside the pipe shaft shall be restored properly to original condition using brand new materials.

d. Access Hatch/Doors. The Contractor shall restore the existing access hatch to the proper location as directed. For Temple Townhouses, the Contractor shall install a new access hatch.

e. New Basin Cabinet. The Contractor shall furnish and install basin cabinet, acrylic marble countertop, lavatory and faucet. The Contractor shall furnish and install new China countertop lavatory L-2149FC with new faucet LF-E340S of INAX or its equivalent. Furnish and install acrylic marble countertop equivalent to Dupon Corean series. Two sizes of countertops are available in various bathroom types: Countertop Type 1 is for single basin - approximately 700x600mm sized basin countertop with W900xD150mm countertop over toilet, located in 3.8m² – 5.9m² size bathrooms. Countertop Type 2 is 1400X600mm countertop size for 2 sets of basins with W900xD150mm countertop over toilet, located in 6.0m² or larger bathrooms. Exposed cabinet doors and cabinet side faces shall be finished with melamine films and inside base cabinet shall be finished with polyester films. The Contractor shall submit the shop drawing of the cabinet and receive approval from the COR prior to the fabrication.

f. Wall panel around the bathtubs. Install new waterproof drywall around bathtubs. Furnish and install acrylic urethane resin base wall panel ARULIGHT series from KYOLITE or equivalent for the walls around the bathtubs.

g. Corian plate shall be installed on the spaces between the bathtub and the wall. Corian plates shall be installed on the space between the wall and the bathtub. The plate shall be properly supported at the bottom.

h. Furnish and install mixing valves and shower heads TMN40STE3Z from TOTO or equivalent. Furnish and install height adjustable slide bar for each shower head.

i. The Contractor shall furnish and install one set of mirror matched the size with existing, one set of toilet paper holder YH50 from TOTO, cabinet knobs, two sets of towel-hangers, two sets of soap dishes S6N from TOTO or equivalent, one set of I-shape grab bar in the bathtub TS134GKY8S from TOTO or equivalent, and one set of L-shape grab bar in the bathtub TS134GLCY8S from TOTO or equivalents. The Contractor shall install one set of medicine cabinet equivalent to the existing model. Furnish and install one set of bathrobe hook on each door.

j. Any removed toilets shall be reinstalled to its original condition.

k. Lighting. Remove one set of lighting fixture on the bathroom ceiling, relocate the associated metal box and cable to space above the bathtub and in front of the sink ceiling and install new government furnished ceiling mount type 120V damp-proof LED light fixture. government furnished ceiling mount type 120V damp-proof LED down light fixture.

l. Floor. Adjust concrete slab leveling with mortar cement and install 300x150mm new ceramic floor tiles ALS-315/1 or equivalent. Approximate floor space is 3.9 ~ 5.9 m² is for Type 1 and 6.0 ~ 8.0 m² is for Type 2 bathroom.

- m. Power for future warm toilet seat. The Contractor shall run hard conduit with VVF wire inside wall for future Warm toilet seat (WASHLET). Conduit route shall be branched out from existing GFCI power outlet over countertop - run inside wall - goes out to inside basin cabinet with an outlet – and branch out to both bathroom with a USG furnished GFCI outlet
- n. Apply plaster putty and sandpaper for creating perfect flat surfaces and apply water base semi-gloss paint on the painted walls and ceilings.
- o. Shower curtain pipe. The Contractor shall furnish curtain pipe matched with existing in size and install at exiting height.
- p. The removed dry board ceiling shall be restored by installing new anti-moisture dry board, apply putty and paint.

C.15.4 Restoration and Refinish in Powder Rooms:

- a. HWS, CW, and CWC Main Riser Pipe. The Contractor shall restore the water supply for the main riser pipes as soon as the new branch main pipe from the Tee and the new isolation Ball Valves are installed in the affected pipe shafts. The branch piping can be worked while the ball valves at the branched 'Teas' are closed.
- b. Drywall. The Contractor shall install anti-mold type drywall to close the pipe shaft. The Contractor shall make sure to furnish the same drywall thickness as the existing. Thermal insulation on the walls inside the pipe shaft shall be restored properly to original condition.
- c. New Lavatory Cabinet. The Contractor shall furnish and install basin cabinet, acrylic marble countertop, lavatory and faucet. The Contractor shall furnish and install new China countertop lavatory L-2149FC with new faucet LF-E340S of INAX or its equivalent. Furnish and install acrylic marble countertop equivalent to Dupon Corean series approximately 700x600mm sized basin countertop extending with W900xD150mm countertop over toilet. Exposed cabinet doors and cabinet side faces shall be finished with melamine films and inside base cabinet shall be finished with polyester films. The Contractor shall submit the shop drawing of the cabinet and receive approval from the COR prior to the fabrication.
- d. The Contractor shall furnish and install one set of mirrors matched the size with existing, one set of toilet paper holder YH50 from TOTO or equivalent, two sets of cabinet knobs, one set of towel-hanger.
- e. Apply water base semi-gloss paint on the painted walls and flat paint on the ceiling. Apply plaster putty and sandpaper for creating perfect flat surfaces.
- f. Lighting 1. Remove one set of lighting fixture on the bathroom ceiling, relocate the associated metal box and cable to the center of the bathroom ceiling and install new government furnished ceiling mount type 120V damp-proof LED light fixture. Extend the lighting cable and conduit to over the lavatory and install government furnished ceiling mount type 120V damp-proof LED down light fixture.
- g. Lighting 2. Remove one set of lighting fixture on the bathroom ceiling, relocate the associated metal box and cable to space above the bathtub and in front of the sink ceiling and install new government furnished ceiling mount type 120V damp-proof LED light fixture.

h. Floor. Adjust concrete slab leveling with mortar cement and install 300 x150mm new ceramic floor tiles ALS-315/1 or equivalent. Approximate floor space is 3.9 ~ 5.9 m2 is for Type 1 and 6.0 ~ 8.0 m2 is for Type 2 bathroom.

i. Power for future warm toilet seat. The Contractor shall run hard conduit with VVF wire inside wall for future Warm toilet seat (WASHLET). Conduit route shall be branched out from existing GFCI power outlet over countertop - run inside wall - goes out to inside basin cabinet with an outlet – and branch out to both bathroom with a USG furnished GFCI outlet.

j. Apply plaster putty and sandpaper for creating perfect flat surfaces and apply water base semi-gloss paint on the painted walls and ceilings.

k. The removed dry board ceiling shall be restored by installing new anti-moisture dry board, apply putty and paint.

C.15.5 Restoration in Laundry rooms / Closets:

a. HWS, CW, and CWC Main Riser Pipe. The Contractor shall restore the water supply for the main riser pipes as soon as the new branch main pipe from the Tee and the new isolation Ball Valves are installed in the affected pipe shafts. The branch piping can be worked while the ball valves at the branched 'Teas' are closed.

b. Drywall. The Contractor shall install anti-mold type drywall to close the pipe shaft. The Contractor shall make sure to furnish the same drywall thickness as the existing. Thermal insulation on the walls inside the pipe shaft shall be restored properly to original condition.

c. Access Hatch/Doors. The Contractor shall restore the existing access hatch to the proper location as directed. For Temple Townhouses, the Contractor shall install a new access hatch.

d. Apply water base semi-gloss paint on the painted walls. Apply plaster putty and sandpaper for creating perfect flat surfaces.

e. Restore sink cabinet and wall cabinet.

C.16 LIST OF BATHROOM / LAUNDRY ROOM IN APARTMENT TYPE**Apartment - (One Bathroom)**

<u>Type</u>	<u>Bathroom (m2) Size / #of sink</u>	<u># of Bathroom required wall demo for pipe work</u>	<u># of Laundry room / # of Laundry room required wall demo</u>	<u>Sink in laundry room to remove temporary and restore for pipe work</u>
PHG1A	4.2 / 1	1	1 / 0	NO
PHG1B	4.0 / 1	1	1 / 1	NO
PHG1C	3.8 / 1	1	1 / 1	NO
PHG1D	3.9 / 1	1	1 / 1	NO

Apartment - (Two Bathrooms)

<u>Type</u>	<u>Bathroom (m2) Size / #of sink (1st bath) (2nd bath)</u>	<u># of Bathroom required wall demo for pipe work</u>	<u># of Laundry room / # of Laundry room required wall demo</u>	<u>Sink in laundry room to remove temporary and restore for pipe work</u>
PHG2A	3.9 / 1 (1 st Bathroom) 3.9 / 1 (2nd Bathroom)	1	1 / 1	NO
PHG2B	4.8 / 1 4.0 / 1	1	1 / 1	NO
PHG2C	4.5 / 1 3.7 / 1	1	1 / 1	NO
PHG2D	3.7 / 1 4.7 / 1	1	1 / 1	NO
PHG2E	4.0 / 1 4.8 / 1	1	1 / 1	NO
PHG2G	4.2 / 1 5.0 / 1	1	1 / 1	NO
PHG2F	3.5 / 1 4.5 / 1	2	1 / 1	NO
PHG3A	4.0 / 1 4.7 / 1	1	1 / 1	NO
PHG3B	4.7 / 1 4.7 / 1	1	1 / 1	YES

Apartment - (Two Bathrooms)

<u>Type</u>	<u>Bathroom (m2) Size / #of sink (1st bath) (2nd bath)</u>	<u># of Bathroom required wall demo for pipe work</u>	<u># of Laundry room / # of Laundry room required wall demo</u>	<u>Sink in laundry room to remove temporary and restore for pipe work</u>
PHG3C	4.6 / 1 6.8 / 1	1	1 / 1	YES
PHG3D	4.0 / 1 4.0 / 1	1	1 / 1	YES

Apartment - (Two Bathrooms + 1 Powder Room)

<u>Type</u>	<u>Bathroom (m2) Size / #of sink (1st bath) (2nd bath) (1st powder)</u>	<u># of Bath+Powder room s required wall demo for pipe work</u>	<u># of Laundry room / # of Laundry room required wall demo</u>	<u>Sink in laundry room to remove temporary and restore for pipe work</u>
PHG3E	4.0 / 1 (1st bath) 4.8 / 1 (2nd bath) 3.0 / 1 (1st powder)	3	1 / 0	YES
T3	4.6 / 1 4.9 / 1 2.4 / 1	3	1 / 1 (plus pipes run under subfloor)	NO
M3	4.2 / 1 6.0 / 2 3.1 / 1	3	1 / 1	NO

Mitsui Apartment - (Three Bathrooms + 1 Powder Room)

<u>Type</u>	<u>Bathroom (m2) Size / #of sink (1st and 2nd bath) (2nd bath) (1st powder)</u>	<u># of Bath+Powder room s required wall demo for pipe work</u>	<u># of Laundry room / # of Laundry room required wall demo</u>	<u>Sink in laundry room to remove temporary and restore for pipe work</u>
	<u>work</u>			
T4	4.6 / 1 5.7 / 2 4.4 / 1	4	1 / 0	NO
M4	5.0 / 1 6.0 / 2 3.1 / 1	4	1 / 1	NO

Apartment - (Three Bathrooms)

<u>Type</u>	<u>Bathroom (m2)</u> <u>Size / #of sink</u> <u>(1st bath)</u> <u>(2nd bath)</u> <u>(3rd bath)</u>	<u># of Bath room s</u> <u>required</u> <u>wall demo for pipe work</u>	<u># of Laundry room /</u> <u># of Laundry room</u> <u>required wall demo</u>	<u>Sink in laundry room</u> <u>to remove temporary</u> <u>and restore for pipe work</u>
PHG4A	4.5 / 1 4.5 / 1 3.5 / 1	3	1 / 0 (plus pipes run in ceiling space)	YES
PHG4B	4.8 / 1 3.8 / 1 3.8 / 1	1	1 / 0 (plus pipes run in ceiling space)	YES

Apartment - (Four Bathrooms + 1 Powder Room)

<u>Type</u>	<u>Bathroom (m2)</u> <u>Size / #of sink</u> <u>(1st bath)</u> <u>(2nd bath)</u> <u>(3rd bath)</u> <u>(4th bath)</u> <u>(1st powder)</u>	<u># of Bath+Powder</u> <u>rooms required</u> <u>wall demo for pipe work</u>	<u># of Laundry room /</u> <u># of Laundry room</u> <u>required wall demo</u>	<u>Sink in laundry room</u> <u>to remove temporary</u> <u>and restore for pipe work</u>
PHGIII	3.5 / 1 4.1 / 1 4.1 / 1 4.7 / 1 3.5 / 1	3	1 / 1	YES
PHGIIA	5.0 / 1 6.8 / 2 5.5 / 1 5.2 / 1 4.3 / 1	3	1 / 1	YES
PHGIIB	6.4 / 2 4.0 / 1 5.0 / 1 4.8 / 1 2.7 / 1	3	1 / 1	YES
PHGIIC	3.5 / 1 7.2 / 1 4.2 / 1 4.1 / 1 2.8 / 1	3	1 / 1	YES

Apartment - (Four Bathrooms + 2 Powder Rooms)

<u>Type</u>	<u>Bathroom (m2)</u> <u>Size / #of sink</u> <u>(1st bath)</u> <u>(2nd bath)</u> <u>(3rd bath)</u> <u>(4th bath)</u> <u>(1st powder)</u> <u>(2nd powder)</u>	<u># of Bath+Powder</u> <u>rooms required</u> <u>wall demo for pipe work</u>	<u># of Laundry room /</u> <u># of Laundry room</u> <u>required wall demo</u>	<u>Sink in laundry room</u> <u>to remove temporary</u> <u>and restore for pipe work</u>
PHGI	8.6 / 2 5.2 / 1 6.1 / 2 4.1 / 1 3.0 / 1 3.0 / 1	3	1 / 1	YES

The remainder of this page is left intentionally blank

SECTION D - PACKAGING AND MARKING

The Contractor shall mark materials delivered to the site as follows:

Mitsui Housing Compound

Attn: Facility Management Office/MacArthur Tower (previously known as Shirota Gordon Tower)

2-1-1 Roppongi

Minato-ku, Tokyo 106-0032

Japan

SECTION E - INSPECTION AND ACCEPTANCE

E.1 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov this address is subject to change.

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THE FOLLOWING FEDERAL ACQUISITION REGULATION CLAUSE(S) IS/ARE INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.246-4	INSPECTION OF SERVICES - FIXED PRICE (AUG 1996)
52.246-12	INSPECTION OF CONSTRUCTION (AUG 1996)
52.246-26	REPORTING NONFORMING ITEMS (JUN 2020)

SECTION F - DELIVERIES OR PERFORMANCE

F.1 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

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If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION CLAUSE(S) IS/ARE INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
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52.242-14	SUSPENSION OF WORK (APR 1984)
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52.242-15	STOP-WORK ORDER (AUG 1989)
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52.242-17	GOVERNMENT DELAY OF WORK (APR 1984)
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52.211-12	LIQUIDATED DAMAGES – CONSTRUCTION (SEPT 2000)
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(a) If the Contractor fails to complete the work within the time specified in the contract, or any extension, the Contractor shall pay liquidated damages to the Government in the amount of ¥20,000 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor’s right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

F.2 PERIOD OF PERFORMANCE

The performance period of this contract is from the start date in Notice to Proceed (NPT) and continuing for 12 months. The initial period of performance includes any transition period authorized under the contract.

The time stated for completion shall include material order, production, site preparation, fabrication, and final cleanup of the premises.

F.3 DELIVERABLES

The Contractor shall deliver the following items:

<u>Description</u>	<u>Quantity</u>	<u>Deliver Date</u>	<u>Deliver To</u>
F.4 Construction Schedule	1	10 days after award	COR
F.10 Post Award Conference	1	10 days after award	COR
H.4 Insurance	1	10 days after award	CO
H.12.2 Overseas Vetting Questionnaire	1	10 days after award	COR
C.8.5 Hazard Assessment and Safety Sheet	1	10 days after award	COR
C.15.3 (e), C.15.4 (c) and H.13 Shop Drawings and Samples	1	10 days after award	COR
H.11.2 Identification of Subcontractors	1	5 days before use	CO
C.5 Work Plan & Progress Schedule	1	Prior to work commencement	COR
C.7 Hazardous Materials (HM) inventory & Material Safety Data Sheets (MSDS)	1	Prior to delivery to the work site	COR
C.8.1 and H.10 Safety Plan	1	Prior to work commencement	COR
C.8.2 Product Data	1	Prior to work commencement	COR
C.8.3 Report	2	Upon work completion	COR
C.8.4 Unforeseen Conditions Report	1	As necessary	COR
C.13 Inspection Report(s)	1	As required	COR
G.2 Payment Request	1	Last calendar day of each month	FMC
H.7.1 Waste Disposal Report	1	Last calendar day of each month	COR

“COR” denotes Contracting Officer’s Representative.

“FMC” denotes Financial Management Center.

“CO” denotes Contracting Officer.

F.4 CONTRACTOR'S SUBMISSION OF CONSTRUCTION SCHEDULES

The time for submission of the schedules and General Instructions referenced in Section I, 52.236-15, "Schedules for Construction Contracts," Paragraph (a) is modified to reflect the due date for submission as 10 calendar days after receipt of an executed contract."

The Contractor shall revise such schedules weekly:

- (a) to account for the actual progress of the work,
- (b) to reflect approved adjustments in the performance schedule, and
- (c) as required by the Contracting Officer to achieve coordination with work by the Government and any separate contractors employed by the Government.

The Contractor shall submit a schedule that sequences work to minimize disruption at the job site.

All deliverables shall be in the English language and any system of dimensions (such as English or metric) shown shall be consistent with the contract. If the Contractor has failed to act promptly and responsively in submitting its deliverables, the Government in approving such deliverables shall allow no extension of time for delay. The Contractor shall identify each deliverable as required by the contract.

F.5 ACCEPTANCE OF SCHEDULE

When the Government has accepted any time schedule, it shall be binding on the Contractor. The completion date is fixed and may be extended only by a written modification to the task order signed by the Contracting Officer. Acceptance or approval of any schedule or revision thereof by the Government shall not:

- (a) extend the completion date or obligate the Government to do so,
- (b) constitute acceptance or approval of any delay, nor
- (c) excuse the Contractor from or relieve the Contractor of its obligation to maintain the progress of the work and achieve final completion by the established completion date.

E.6 NOTICE OF DELAY

If the Contractor receives a notice of any change in the work, or if any other conditions arise which are likely to cause or are actually causing delays which the Contractor believes may result in late completion of the project, the Contractor shall notify the Contracting Officer. The Contractor's notice shall state the effect, if any, of such change or other conditions upon the approved schedule, and shall state in what respects, if any, the relevant schedule or the completion date should be revised. The Contractor shall give such notice promptly, not more than ten (10) days after the first event giving rise to the delay or prospective delay. Only the Contracting Officer may revise the approved time schedule.

F.7 NOTICE TO PROCEED

- (a) Following receipt from the Contractor of acceptable bonds or evidence of insurance within the time specified in Section H of this contract, the Contracting Officer will provide to the Contractor a Notice to Proceed. The Contractor shall then begin work.
- (b) It is possible that the Contracting Officer may elect to issue the Notice to Proceed before receipt and acceptance of any bonds or evidence of insurance. Issuance of a Notice to Proceed by the Government before receipt of the required bonds or insurance certificates or policies shall not be a waiver of the requirement to furnish these documents.

F.8 WORKING HOURS

The Contractor shall perform all work during 08:30 hours and 17:00 hours from Monday through Friday except for weekends and the U.S. and Japanese holidays identified in Sections I.15. The Contracting Officer may approve other hours. The Contractor shall give 24 hours advance notice to the Contracting Officer, who may consider any deviation from the hours identified above. Changes in work hours will not be a cause for a price increase if initiated by the Contractor.

F.9 EXCUSABLE DELAYS

The Contractor will be allowed time, not money, for excusable delays as defined in FAR 52.249-10, Default. Examples of such cases include:

- (1) acts of God or of the public enemy,
- (2) acts of the United States Government in either its sovereign or contractual capacity,
- (3) acts of the government of the host country in its sovereign capacity,
- (4) acts of another contractor in the performance of a contract with the Government,
- (5) fires,
- (6) floods,
- (7) epidemics,
- (8) quarantine restrictions,
- (9) strikes,
- (10) freight embargoes,
- (11) delays in delivery of Government furnished equipment and
- (12) unusually severe weather.

In each instance, the failure to perform must be beyond the control and without the fault or negligence of the Contractor, and the failure to perform furthermore

- (a) must be one that the Contractor could not have reasonably anticipated and taken adequate measures to protect against,
- (b) cannot be overcome by reasonable efforts to reschedule the work, and
- (c) directly and materially affects the date of final completion of the project.

F.10 POST AWARD CONFERENCE

The U.S. Government will hold a post award conference ten (10) days after contract award at Facility Management Office in Sirota Gordon Tower, located at the Mitsui Housing Compound, 2-1-1 Roppongi, Minato-ku, Tokyo to discuss the location and type of residences to be serviced, submittals, personnel issues, procedures and other important matters concerning the contract.

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 DOSAR 652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is the Maintenance Inspector at the U.S. Embassy Tokyo, Japan.

G.1.1 DUTIES

The COR is responsible for inspection and acceptance of services. These duties include review of contractor invoices, including the supporting documentation required by the contract. The COR may provide technical advice, substantive guidance, inspections, invoice approval, and other purposes as deemed necessary under the contract.

G.2 PAYMENT

The Contractor shall send invoices to the office identified in Block 27 of the SF-1442, or the Contractor may submit invoices electronically to TokyoInvoices@state.gov.
American Embassy Tokyo
Attn: Financial Management Center (FMC)

G.2.1 GENERAL

The Contractor shall follow Section I, 52.232-5, "Payments Under Fixed-Price Construction Contracts." The following subsections elaborate upon the information contained in that clause.

G.2.2 DETAIL OF PAYMENT REQUESTS

The Contractor's requests for payment, which shall be made no more frequently than monthly shall cover the value of labor and materials completed and in place, including a prorated portion of overhead and profit.

G.2.3 PAYMENTS TO SUBCONTRACTORS

The Contractor shall make timely payment from the proceeds of the progress or final payment to subcontractors and suppliers following the Contractor's contractual arrangements with them.

G.2.4 EVALUATION BY THE CONTRACTING OFFICER

The Contracting Officer shall make a determination as to the amount that is due after an inspection of the work. The Contracting Officer shall advise the Contractor if the Contracting Officer does not approve payment of the full amount applied for, less the retainage addressed in FAR 52.232-5.

G.2.5 ADDITIONAL WITHHOLDING

Independently of monies retained by the Government under FAR 52.232-5 the Government may withhold from payments due the Contractor any amounts necessary to cover:

- (a) Wages or other amounts due the Contractor's employees on this project;
- (b) Wages or other amounts due employees of subcontractors on this project;
- (c) Amounts due suppliers of materials or equipment for this project; and
- (d) Any other amounts that the Contractor may be held liable under this contract, including but not limited to the actual or prospective costs of correction of defective work and costs for failure to make adequate progress.

G.2.6. PAYMENT

In accordance with 52.232-27(a), the 14-day period identified in FAR 52.232-27(a)(1)(i)(A) is changed to 30 days.

G.3 RECORDKEEPING REQUIREMENTS

The Contractor and the COR shall both maintain a complete and accurate management file. The file shall contain, as a minimum, the following items:

- (a) The U.S. Government's copies of all task orders issued under this contract, and all inspection reports completed by the COR (OF-127). These forms will be supplied to advise the Contractor of service requests and to document the performance of all work.
- (b) Contractor's Service Report forms, documenting arrival and departure time of the contractor's representative performing the service, and all information on parts installed for major repairs only.
- (c) Documentation of any complaints from post personnel or unusual incidents that may have taken place during the visit to the site.

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 ISSUANCE OF VERBAL TASK ORDERS

The Contracting Officer may issue verbal task orders, as stated in subsection B.4.1. Any verbal task orders issued shall be confirmed in writing within three days when the Mission is open for business. U.S. or local holidays observed by the Mission and natural disasters or other emergencies that result in a suspension of normal operations shall not be counted against the three-day period. In all cases, the Contractor must begin work after receipt of a verbal order, without waiting for written confirmation.

H.2 ORDERING OFFICIAL

The designated ordering individual for this contract is the Contracting Officer.

H.3 RESERVED

H.4 INSURANCE

H.4.1 AMOUNT OF INSURANCE

The Contractor is required to provide whatever insurance is legally necessary under Section I, 52.228-5, "Insurance - Work on a Government Installation." The Contractor shall, at its own expense, provide and maintain during the entire performance period the following insurance amounts:

General Liability (includes premises/operations, collapse hazard, products, completed operations, contractual, independent contractors, broad form property damage, personal injury):

General Liability	
(1) Bodily injury on or off the site in Japanese Yen:	
Per Occurrence	Yen 30,000,000.
Cumulative	Yen 90,000,000.
(2) Property damage on or off the site in Japanese Yen:	
Per Occurrence	Yen 30,000,000.
Cumulative	Yen 90,000,000.

The types and amounts of insurance are the minimums required. The Contractor shall obtain any other types of insurance required by local law or that are ordinarily or customarily obtained in the location of the work. The limit of such insurance shall be as provided by law or sufficient to meet normal and customary claims.

The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to:

- (a) any property of the Contractor,
- (b) its officers,
- (c) agents,
- (d) servants,
- (e) employees, or
- (f) any other person, arising from and incident to the Contractor's performance of this contract.

The Contractor shall hold harmless and indemnify the Government from any and all claims arising, except in the instance of gross negligence on the part of the Government.

The Contractor shall obtain adequate insurance for damage to, or theft of, materials and equipment in insurance coverage for loose transit to the site or in storage on or off the site.

H.4.2 GOVERNMENT AS ADDITIONAL INSURED

The general liability policy required of the Contractor shall name "the United States of America, acting by and through the Department of State", as an additional insured with respect to operations performed under this contract.

H.4.3 TIME FOR SUBMISSION OF EVIDENCE OF INSURANCE

The Contractor shall provide evidence of the insurance required under this contract within ten (10) calendar days after contract award. Failure to timely submit this evidence, in a form acceptable to the Contracting Officer, may result in rescinding or termination of the contract by the Government.

H.5 GOVERNING LAW

The laws of the United States shall govern the contract and the interpretation of the contract.

H.6 RESERVED

H.7 LAWS AND REGULATIONS

H.7.1 COMPLIANCE REQUIRED

The Contractor shall, without additional expense to the Government, be responsible for complying with all host country laws, codes, ordinances, and regulations applicable to the performance of the work, and with the lawful orders of any governmental authority having jurisdiction. Host country authorities may not enter the construction site without the permission of the Contracting Officer. Unless directed by the Contracting Officer, the Contractor shall comply with the more stringent of:

- (a) the requirements of such laws, regulations and orders; or
- (b) the contract.

If a conflict between the contract and such laws, regulations and orders, the Contractor shall promptly advise the Contracting Officer of the conflict and recommend a proposed course of action for resolution by the Contracting Officer.

H.7.2 LABOR, HEALTH AND SAFETY LAWS AND CUSTOMS

The Contractor shall comply with all local labor laws, regulations, customs and practices pertaining to labor, safety, and similar matters, unless doing so would be inconsistent with the requirements of this contract.

H.7.3 SUBCONTRACTORS

The Contractor shall give written assurance to the Contracting Officer that all subcontractors and others performing work on or for the project have obtained all required licenses and permits.

H.7.4 EVIDENCE OF COMPLIANCE

The Contractor shall submit proper documentation and evidence of compliance with this clause to the Contracting Officer.

H.8 RESPONSIBILITY OF CONTRACTOR

H.8.1 DAMAGE TO PERSONS OR PROPERTY

The Contractor shall be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence. The Contractor shall take proper safety and health precautions to protect the work, the workers, the public, and the property of others.

H.8.2 RESPONSIBILITY FOR WORK PERFORMED

The Contractor shall be responsible for all materials delivered and work performed until final completion and acceptance of the entire work, except for any completed unit of work that may have been accepted in writing under the contract.

H.9 MAINTENANCE OPERATIONS

H.9.1 OPERATIONS AND STORAGE AREAS

(a) Confinement to Authorized Areas. The Contractor shall confine all operations (including storage of materials) on Government premises to areas authorized or approved by the Contracting Officer.

(b) Reserved.

H.9.2 USE OF PREMISES

(a) Occupied Premises. If the premises are occupied, the Contractor, its subcontractors, and their employees shall comply with the regulations promulgated by the Government governing access to, operation of, and conduct while in or on the premises. The Contractor shall perform the work required under this contract without unreasonably interrupting or interfering with the conduct of Government business.

(b) Requests from Occupants. The Contractor shall refer to the Contracting Officer any request received by the Contractor from occupants of existing buildings to change the sequence of work.

(c) Access Limited. The Contractor, its subcontractors and their employees shall not have access to or be admitted into any building or portion of the site outside the areas designated in this contract except with the permission of the Contracting Officer.

H.10 SAFETY

DOSAR 652.236-70 ADDITIONAL SAFETY MEASURES (OCT 2017)

In addition to the safety/accident prevention requirements of FAR 52.236-13, Accident Prevention Alternate I, the contractor shall comply with the following additional safety measures.

(a) *High Risk Activities.* If the project contains any of the following high risk activities, the contractor shall follow the section in the latest edition, as of the date of the solicitation, of the U.S. Army Corps of Engineers Safety and Health manual, EM 385-1-1, that corresponds to the high risk activity. Before work may proceed, the contractor must obtain approval from the COR of the written safety plan required by FAR 52.236-13, Accident Prevention Alternate I (see paragraph (f) below), containing specific hazard mitigation and control techniques.

- (1) Scaffolding;
- (2) Work at heights above 1.8 meters;
- (3) Trenching or other excavation greater than one (1) meter in depth;
- (4) Earth-moving equipment and other large vehicles;
- (5) Cranes and rigging;
- (6) Welding or cutting and other hot work;
- (7) Partial or total demolition of a structure;
- (8) Temporary wiring, use of portable electric tools, or other recognized electrical hazards. Temporary wiring and portable electric tools require the use of a ground fault circuit interrupter (GFCI) in the affected circuits; other electrical hazards may also require the use of a GFCI;
- (9) Work in confined spaces (limited exits, potential for oxygen less than 19.5 percent or combustible atmosphere, potential for solid or liquid engulfment, or other hazards considered to be immediately dangerous to life or health such as water tanks, transformer vaults, sewers, cisterns, etc.);
- (10) Hazardous materials - a material with a physical or health hazard including but not limited to, flammable, explosive, corrosive, toxic, reactive or unstable, or any operations, which creates any kind of contamination inside an occupied building such as dust from demolition activities, paints, solvents, etc.; or
- (11) Hazardous noise levels as required in EM 385-1 Section 5B or local standards if more restrictive.

(b) *Safety and Health Requirements.* The Contractor and all subcontractors shall comply with the latest edition of the U.S. Army Corps of Engineers Safety and Health manual EM 385-1-1, or OSHA 29 CFR parts 1910 or 1926 if no EM 385-1-1 requirements are applicable, and the accepted contractor's written safety program.

(c) *Mishap Reporting.* The Contractor is required to report **immediately** all mishaps to the COR and the contracting officer. A "mishap" is any event causing injury, disease or illness, death, material loss or property damage, or incident causing environmental contamination. The mishap reporting requirement shall include fires, explosions, hazardous materials contamination, and other similar incidents that may threaten people, property, and equipment.

(d) *Records.* The Contractor shall maintain an accurate record on all mishaps incident to work performed under this contract resulting in death, traumatic injury, occupational disease, or

damage to or theft of property, materials, supplies, or equipment. The Contractor shall report this data in the manner prescribed by the contracting officer.

(e) Subcontracts. The Contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) Written program. The plan required by paragraph (f)(1) of the clause entitled "Accident Prevention Alternate I" shall be known as the Site Safety and Health Plan (SSHP) and shall address any activities listed in paragraph (a) of this clause, or as otherwise required by the contracting officer/COR.

(1) The SSHP shall be submitted at least 10 working days prior to commencing any activity at the site.

(2) The plan must address developing activity hazard analyses (AHAs) for specific tasks. The AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. Work shall not begin until the AHA for the work activity has been accepted by the COR and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives.

(3) The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by EM 385-1-1) shall be identified and included in the AHA. Proof of their competency/qualification shall be submitted to the contracting officer or COR for acceptance prior to the start of that work activity. The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

(End of clause)

H.11 SUBCONTRACTORS AND SUPPLIERS

H.11.1 CLAIMS AND ENCUMBRANCES

The Contractor shall satisfy all lawful claims of any persons or entities employed by the Contractor, including:

- (a) subcontractors,
- (b) material men and laborers,

for all labor performed and materials furnished under this contract, including the applicable warranty or correction period.

The Contractor shall not at any time permit any lien, attachment, or other encumbrance to be entered against or to remain on the building(s) or the premises as a result of nonperformance of any part of this contract.

H.11.2 APPROVAL OF SUBCONTRACTORS

(a) Review and Approval. The Government reserves the right to review proposed subcontractors for a period of five (5) days before providing notice of approval or rejection.

(b) Rejection of Subcontractors. The Government reserves the right to reject any or all subcontractors proposed if their participation in the project may cause damage to the national

security interests of the United States. The Contractor agrees to promptly replace any subcontractor rejected by the Government under this clause.

H.12 CONTRACTER PERSONNEL

H.12.1 REMOVAL OF PERSONNEL

The Contractor shall:

- (a) maintain discipline at the site and at all times;
- (b) take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by or amongst those employed at the site; and
- (c) take all reasonable precautions for the preservation of peace and protection of persons and property in the neighborhood of the project against unlawful, riotous, or disorderly conduct.

The Contracting Officer may require, in writing, that the Contractor remove from the work any employee that the Contracting Officer determines:

- (a) incompetent,
- (b) careless,
- (c) insubordinate or
- (d) otherwise objectionable, or
- (e) whose continued employment on the project is deemed by the Contracting Officer to be contrary to the Government's interests.

H.12.2 MAINTENANCE PERSONNEL SECURITY

(a) Within ten (10) calendar days after award of the contract, the Contractor shall submit to the Contracting Officer's Representative (COR) a completed Overseas Vetting Questionnaire on each employee, including the substitute employee(s), who will be working under the contract. The Contractor shall include a list of workers and supervisors assigned to this project. The U.S. Government will run background checks on these individuals. It is anticipated that security checks will take between 30 and 90 calendar days to perform.

(b) The U.S. Government shall issue DOS One Badge identity cards to Contractor personnel, after they are approved. Contractor personnel shall display identity card(s) on the uniform at all times while providing services under this contract. These identity cards are the property of the U.S. Government. The Contractor is responsible for their return at the end of the contract, when an employee leaves Contractor service, or at the request of the U.S. Government. The U.S. Government reserves the right to deny access to U.S.-owned and U.S.-operated facilities to any individual. The Contractor personnel must immediately inform the Local Guard Force and COR if an identity card is lost or stolen.

(c) Contractor personnel will follow all security-related instructions from Post Management and the Local Guard Force, as well as any alarms. Contractor personnel will also appropriately react to any regularly scheduled emergency drills.

H.13 MATERIALS AND EQUIPMENT

H.13.1 SELECTION AND APPROVAL OF MATERIALS

(a) Standard of Quality. All materials and equipment incorporated into the work shall be new and for the purpose intended, unless otherwise specified. All workmanship shall be of good quality and performed in a skillful manner as determined by the Contracting Officer.

(b) Selection by Contractor. Where the contract permits the Contractor to select products, materials or equipment to be incorporated into the work, or where specific approval is otherwise required by the contract, the Contractor shall give the Contracting Officer, for approval:

- (1) The names of the manufacturer;
- (2) Model number;
- (3) Source of procurement of each such product, material or equipment; and
- (4) Other pertinent information concerning the:

- (i) Nature,
- (ii) Appearance,
- (iii) Dimensions,
- (iv) Performance,
- (v) Capacity, and
- (vi) Rating

unless otherwise required by the Contracting Officer.

The Contractor shall provide this information in a timely manner to permit the Government to evaluate the information against the requirements of the contract. The Contractor shall provide a submittal register ten (10) days after contract award showing when shop drawings, samples, or submittals shall be made. The Contractor shall submit samples for approval at the contractor's expense, with all shipping charges prepaid, when directed to do so by the Contracting Officer or COR. Installation or use of any products, materials or equipment without the required approval shall be at the risk of rejection.

H.13.2 CUSTODY OF MATERIALS

The Contractor shall be responsible for the custody of all materials received for incorporation into the project, including Government furnished materials, upon delivery to the Contractor or to any person for whom it is responsible, including subcontractors. The Contractor shall deliver all items to the site as soon as practicable. The Contractor shall clearly mark in a manner directed by the Contracting Officer all items of which the Contractor has custody but that have not been delivered or secured at the site. The Contractor shall clearly indicate the use of such items for this U.S. Government project.

H.14 SURPLUS MATERIALS

Any surplus materials, fixtures, articles or equipment remaining at the completion of the project shall become the property of the Contractor, except those items furnished by the Government, whose cost is not included in the contract price.

H.15 SPECIAL WARRANTIES

H.15.1 SPECIAL WARRANTY OBLIGATIONS

Any special warranties that may be required under the contract shall be subject to the terms of FAR 52.246-21, "Warranty of Construction," unless they conflict with the terms of such special warranties.

H.15.2 WARRANTY INFORMATION

The Contractor shall obtain and furnish to the Government all information that is required to make any subcontractor's, manufacturers, or supplier's guarantee or warranty legally binding and effective. The Contractor shall submit both the information and the guarantee or warranty to the Government in sufficient time to permit the Government to meet any time limit specified in the guarantee or warranty, but not later than completion and acceptance of all work under this contract.

H.16 NONCOMPLIANCE WITH CONTRACT REQUIREMENTS

The Contracting Officer shall have the right to order the Contractor to suspend any or all work under the contract until the Contractor has complied or begun complying with the noncompliance notice in a reasonable period of time. The Contractor will not be entitled to any extension of contract time or payment for any costs incurred as a result of being ordered to suspend work for such a cause. See FAR 52.242-14, Suspension of Work.

SECTION I - CONTRACT CLAUSES

I.1 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

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THE FOLLOWING FEDERAL ACQUISITION REGULATION CLAUSES ARE INCORPORATED BY REFERENCE:

CLAUSE TITLE AND DATE

52.202-1	DEFINITIONS (JUN 2020)
52.203-3	GRATUITIES (APR 1984)
52.203-7	ANTI-KICKBACK PROCEDURES (JUN 2020)
52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020)
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)
52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB (DEC 2023)

- 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATION AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)
- 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)
- 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT OR VOLUNTARILY EXCLUDED (JAN 2025)
- 52.215-2 AUDIT AND RECORDS – NEGOTIATION (JUN 2020)
- 52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT (OCT 1997)
- 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA – MODIFICATIONS (JUN 2020)
- 52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA – MODIFICATIONS (JUN 2020)
- 52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-MODIFICATIONS (NOV 2021)
- 52.216-7 ALLOWABLE COST AND PAYMENT (AUG 2018) ALTERNATE I (FEB 1997)
- 52.222-1 NOTICE TO THE GOVERNMENT OF LABOR DISPUTES (FEB 1997)
- 52.222-19 CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)
- 52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021)
- 52.225-5 TRADE AGREEMENTS (NOV 2023)
- 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PROCUREMENTS (FEB 2021)
- 52.225-14 INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
- 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
- 52.228-4 WORKERS' COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)
- 52.228-5 INSURANCE-WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
- 52.228-11 PLEDGES OF ASSETS (FEB 2021)
- 52.228-13 ALTERNATIVE PAYMENT PROTECTION (JULY 2000)
- 52.228-14 IRREVOCABLE LETTERS OF CREDIT (NOV 2014)

- 52.229-6 TAXES - FOREIGN FIXED-PRICE CONTRACTS (FEB 2013)
- 52.232-1 PAYMENTS (APR 1984)
- 52.232-5 PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)
- 52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002)
- 52.232-17 INTEREST (MAY 2014)
- 52.232-18 AVAILABILITY OF FUNDS (APR 1984)
- 52.232-25 PROMPT PAYMENT (JAN 2017)
- 52.232-27 PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2017)
- 52.232-32 PERFORMANCE BASED PAYMENTS (APR 2012)
- 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER – SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
- 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
- 52.233-1 DISPUTES (MAY 2014) ALTERNATE I (DEC 1991)
- 52.233-3 PROTEST AFTER AWARD (AUG 1996)
- 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004)
- 52.236-2 DIFFERING SITE CONDITIONS (APR 1984)
- 52.236-3 SITE INVESTIGATIONS AND CONDITIONS AFFECTING THE WORK (APR 1984)
- 52.236-5 MATERIAL AND WORKMANSHIP (APR 1984)
- 52.236-6 SUPERINTENDENCE BY THE CONTRACTOR (APR 1984)
- 52.236-7 PERMITS AND RESPONSIBILITIES (NOV 1991)
- 52.236-8 OTHER CONTRACTS (APR 1984)
- 52.236-9 PROTECTION OF EXISTING VEGETATION, STRUCTURES EQUIPMENT, UTILITIES, AND IMPROVEMENTS (APR 1984)
- 52.236-10 OPERATIONS AND STORAGE (APR 1984)
- 52.236-11 USE AND POSSESSION PRIOR TO COMPLETION (APR 1984)
- 52.236-12 CLEANING UP (APR 1984)
- 52.236-13 ACCIDENT PREVENTION (NOV 1991)

- 52.236-14 AVAILABILITY AND USE OF UTILITY SERVICES (APR 1984)
- 52.236-15 SCHEDULES FOR CONSTRUCTION CONTRACTS (APR 1984)
- 52.236-21 SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION (FEB 1997)
- 52.237-3 CONTINUITY OF SERVICES (JAN 1991)
- 52.242-13 BANKRUPTCY (JULY 1995)
- 52.243-1 CHANGES - FIXED-PRICE (AUG 1987) ALTERNATE II (APR 1984)
- 52.245-1 GOVERNMENT PROPERTY (SEP 2021)
- 52.245-2 GOVERNMENT PROPERTY INSTALLATION OPERATION SERVICES (APR 2012)
- 52.246-21 WARRANTY OF CONSTRUCTION (MAR 1994)
- 52.248-1 VALUE ENGINEERING (JUN 2020)
- 52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012)
- 52.249-4 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (SERVICES) (SHORT FORM) (APR 1984)
- 52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984)
- 52.249-14 EXCUSABLE DELAYS (APR 1984)
- 52.253-1 COMPUTER GENERATED FORMS (JAN 1991)

I.2 FEDERAL ACQUISITION REGULATION CLAUSES PROVIDED IN FULL TEXT

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

FAR 52.203-08 CANCELLATION, RESCISSION AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (MAY 2014)

(a) If the Government receives information that a contractor or a person has violated 41 U.S.C. 2102- 2104, Restrictions on Obtaining and Disclosing Certain Information, the Government may-

- (1) Cancel the solicitation, if the contract has not yet been awarded or issued; or
- (2) Rescind the contract with respect to which-

(i) The Contractor or someone acting for the Contractor has been convicted for an offense where the conduct violates 41 U.S.C.2102 for the purpose of either-

(A) Exchanging the information covered by such subsections for anything of value; or

- (B) Obtaining or giving anyone a competitive advantage in the award of a Federal agency procurement contract; or
- (ii) The head of the contracting activity has determined, based upon a preponderance of the evidence, that the Contractor or someone acting for the Contractor has engaged in conduct punishable under 41 U.S.C. 2105(a).
- (b) If the Government rescinds the contract under paragraph (a) of this clause, the Government is entitled to recover, in addition to any penalty prescribed by law, the amount expended under the contract.
- (c) The rights and remedies of the Government specified herein are not exclusive, and are in addition to any other rights and remedies provided by law, regulation, or under this contract.

(End of clause)

FAR 52.204-28 Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts (Dec 2023)

(a) *Definitions.* As used in this clause—

Covered article as defined in 41 U.S.C. 4713(k), means—

- (1) *Information technology*, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental *information technology*.

FASCSA order, means any of the following orders issued under the Federal *Acquisition* Supply Chain Security Act (FASCSA) requiring the removal of covered articles from *executive agency* information systems or the exclusion of one or more named sources or named covered articles from *executive agency procurement* actions, as described in 41 CFR 201–1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy

Sensitive compartmented information means *classified information* concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of *products* or services, at any tier.

(b) *Notice*. During contract performance, the Contractor *shall* be required to comply with any of the following that apply: DHS FASCSA orders, DoD FASCSA orders, or DNI FASCSA orders. The applicable FASCSA order(s) will be identified in the request for quotation (see 8.405-2), or in the notice of intent to place an order (see 16.505(b)). FASCSA orders will be identified in paragraph (b)(1) of FAR 52.204-30, Federal *Acquisition* Supply Chain Security Act Orders—Prohibition, with its *Alternate II*.

(c) *Removal*. Upon notification from the *contracting officer*, during the performance of the contract, the Contractor *shall* promptly make any necessary changes or modifications to remove any covered article or any product or service produced or provided by a source that is subject to an applicable Governmentwide FASCSA order (see FAR 4.2303(b)).

(End of clause)

FAR 52.204-30 Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023)

(a) *Definitions.* As used in this clause—

Covered article, as defined in 41 U.S.C. 4713(k), means—

- (1) *Information technology*, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental *information technology*.

FASCSA order means any of the following orders issued under the Federal *Acquisition* Supply Chain Security Act (FASCSA) requiring the removal of covered articles from *executive agency* information systems or the exclusion of one or more named sources or named covered articles from *executive agency procurement* actions, as described in 41 CFR 201–1.303(d) and (e):

- (1) The Secretary of Homeland Security *may* issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order *may* be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense *may* issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order *may* be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) *may* issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order *may* be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as *may* be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of *national defense* or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any *products* or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means *classified information* concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of *products* or services, at any tier.

(b) Prohibition.

(1) Unless an applicable waiver has been issued by the issuing official, Contractors *shall* not provide or use as part of the performance of the contract any covered article, or any *products* or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For *solicitations* and contracts awarded by a Department of Defense *contracting office*, DoD FASCSA orders apply.

(ii) For all other *solicitations* and contracts DHS FASCSA orders apply.

(2) The Contractor *shall* search for the phrase “FASCSA order” in the *System for Award Management (SAM)* at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government *may* identify in the *solicitation* additional FASCSA orders that are not in SAM, which are effective and apply to the *solicitation* and resultant contract.

(4) A FASCSA order issued after the date of *solicitation* applies to this contract only if added by an amendment to the *solicitation* or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor *shall* disclose the following:

- (A) Name of the product or service provided to the Government;
- (B) Name of the covered article or source subject to a FASCSA order;
- (C) If applicable, name of the vendor, including the Commercial and Government Entity code and *unique entity identifier* (if known), that supplied or *supplies* the covered article or the product or service to the *Offeror*;
- (D) Brand;
- (E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (F) Item description;
- (G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The *contracting officer* will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A *contracting officer* may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement.

(1) During contract performance, the Contractor *shall* review *SAM.gov* at least once every three months, or as advised by the *Contracting Officer*, to check for covered articles subject to FASCSA order(s), or for *products* or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor *shall* conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

(i) The Contractor *shall* submit a report to the *contracting office* as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor *shall* report to both the *contracting office* for the indefinite delivery contract and the *contracting office* for any affected order.

(ii) If a report is required to be submitted to a *contracting office* under (c)(3)(i) of this clause, the Contractor *shall* submit the report as follows:

- (A) If a Department of Defense *contracting office*, the Contractor *shall* report to the website at <https://dibnet.dod.mil>.

(B) For all other *contracting offices*, the Contractor *shall* report to the *Contracting Officer*.

(4) The Contractor *shall* report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

- (A) Contract number;
- (B) Order number(s), if applicable;
- (C) Name of the product or service provided to the Government or used during performance of the contract;
- (D) Name of the covered article or source subject to a FASCSA order;
- (E) If applicable, name of the vendor, including the Commercial and Government Entity code and *unique entity identifier* (if known), that supplied the covered article or the product or service to the Contractor;
- (F) Brand;
- (G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (H) Item description; and
- (I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

- (A) Any further available information about mitigation actions undertaken or recommended.
- (B) In addition, the Contractor *shall* describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent

future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal*. For Federal Supply Schedules, Governmentwide *acquisition* contracts, multi-agency contracts or any other *procurement* instrument intended for use by multiple agencies, upon notification from the *Contracting Officer*, during the performance of the contract, the Contractor *shall* promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) Subcontracts.

(1) The Contractor *shall* insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the *acquisition* of *commercial products* and *commercial services*.

(2) The Government *may* identify in the *solicitation* additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor *shall* notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the *solicitation* that are not in SAM apply to the contract and all subcontracts.

(End of clause)

Alternate I (Dec 2023). As prescribed in 4.2306(c), substitute the following paragraph (b)(1) for paragraph (b)(1) of the basic clause:

(b) *Prohibition.* (1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any *products* or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (b)(1).

Yes ☐ No ☐ DHS FASCSA Order

Yes ☐ No ☐ DoD FASCSA Order

Yes ☐ No ☐ DNI FASCSA Order

Alternate II (Dec 2023). As prescribed in 4.2306(c)(2)(ii), substitute the following paragraph (b) in place of paragraph (b) of the basic clause. This clause applies to each order as identified by the *Contracting Officer*.

(b) *Prohibition.* (1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any *products* or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (b)(1).

Yes ☐ No ☐ DHS FASCSA Order

Yes ☐ No ☐ DoD FASCSA Order

Yes ☐ No ☐ DNI FASCSA Order

(2) The Contractor *shall* search for the phrase “FASCSA order” in the *System for Award Management (SAM)* at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1) of this clause.

(3) The Government *may* identify in the request for quotation (RFQ) or in the notice of intent to place an order additional FASCSA orders that are not in SAM, but are effective and apply to the order.

(4) A FASCSA order issued after the date of the RFQ or the notice of intent to place an order applies to this contract only if added by an amendment to the RFQ or in the notice of intent to place an order or added by modification to the order (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver, the Contractor *shall* disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and *unique entity identifier* (if known), that supplied the covered article or the product or service to the *Offeror*;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The *contracting officer* will review disclosures provided in paragraph (b)(5)(i) of this clause to determine if any waiver *may* be sought. A

contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and may instead make award to an offeror that does not require a waiver.

(End of clause)

FAR 52.213-4 TERMS AND CONDITIONS—SIMPLIFIED ACQUISITIONS (OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES) (MAR 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses that are incorporated by reference:

(1) The clauses listed below implement provisions of law or Executive order:

- (i) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (ii) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (iii) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (iv) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328), unless the agency grants an exception - see paragraph (b) of [52.204-27](#).
- (v) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).
- (vi) [52.222-3](#), Convict Labor (Jun 2003) (E.O.11755).
- (vii) [52.222-21](#), Prohibition of Segregated Facilities (Oct 2025).
- (viii) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).
- (ix) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- (x) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (xi) [52.233-3](#), Protest After Award (Aug 1996) ([31 U.S.C. 3553](#)).
- (xii) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) ([Pub. L. 108-77](#) and 108-78 ([19 U.S.C. 3805 note](#))).

(2) Listed below are additional clauses that apply:

- (i) [52.232-1](#), Payments (Apr 1984).

- (ii) [52.232-8](#), Discounts for Prompt Payment (Feb 2002).
- (iii) [52.232-11](#), Extras (Apr 1984).
- (iv) [52.232-25](#), Prompt Payment (Jan 2017).
- (v) [52.232-39](#), Unenforceability of Unauthorized Obligations (Jun 2013).
- (vi) [52.233-1](#), Disputes (May 2014).
- (vii) [52.244-6](#), Subcontracts for Commercial Products and Commercial Services (Jan 2025).
- (viii) [52.253-1](#), Computer Generated Forms (Jan 1991).

(b) The Contractor shall comply with the following FAR clauses, incorporated by reference, unless the circumstances do not apply:

(1) The clauses listed below implement provisions of law or Executive order:

- (i) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).
- (ii) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020)(Pub. L. 109-282) ([31 U.S.C. 6101 note](#)) (Applies to contracts valued at or above the threshold specified in FAR [4.1403\(a\)](#) on the date of award of this contract).
- (iii) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Mar 2026) ([E.O. 13126](#)) (Applies to contracts for supplies exceeding the micro-purchase threshold, as defined in [2.101](#) on the date of award of this contract).
- (iv) [52.222-20](#), Contracts for Materials, Supplies, Articles, and Equipment., Contracts for Materials, Supplies, Articles, and Equipment (Jun 2020) ([41 U.S.C. chapter 65](#)) (Applies to supply contracts over the threshold specified in FAR 22.602 on the date of award of this contract, in the United States, Puerto Rico, or the U.S. Virgin Islands).
- (v) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)) (Applies to contracts valued at or above the threshold specified in FAR [22.1303\(a\)](#) on the date of award of this contract).
- (vi) [52.222-36](#), Equal Employment for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)) (Applies to contracts over the threshold specified in FAR [22.1408\(a\)](#) on the date of award of this contract, unless the work is to be performed outside the United States by employees recruited outside the United States). (For purposes of this clause, "United States" includes the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, and Wake Island.)
- (vii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212) (Applies to contracts valued at or above the threshold specified in FAR [22.1303\(a\)](#) on the date of award of this contract).
- (viii) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)) (Applies to service contracts over \$2,500 that are subject to the Service Contract Labor Standards statute and will be performed in the United States, District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, or the outer Continental Shelf).
- (ix)
 - (A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627) (Applies to all solicitations and contracts).

(B) Alternate I (Mar 2015) (Applies if the Contracting Officer has filled in the following information with regard to applicable directives or notices: Document title(s), source for obtaining document(s), and contract performance location outside the United States to which the document applies).

(x) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022) (Applies when [52.222-6](#) or [52.222-41](#) are in the contract and performance in whole or in part is in the United States (the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act ([43 U.S.C. 1331](#), *et seq.*))).

(xi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706) (Applies when [52.222-6](#) or [52.222-41](#) are in the contract and performance in whole or in part is in the United States (the 50 States and the District of Columbia.))

(xii) [52.223-5](#), Pollution Prevention and Right-to-Know Information (May 2024) ([42 U.S.C. 11001-11050](#) and [13101-13109](#)) (Applies to services performed on Federal facilities).

(xiii) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*) (Applies to contracts for products as prescribed at FAR [23.109](#)(d)(1)).

(xiv) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*) (Applies to maintenance, service, repair, or disposal of refrigeration equipment and air conditioners).

(xv) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons as a propellant or as a solvent; or contracts for maintenance or repair of electronic or mechanical devices).

(xvi) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons as a foam blowing agent; or contracts for construction of buildings or facilities.

(xvii) [52.223-23](#), Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 76711](#)) (Applies to contracts when the agency identifies in the statement of work, or elsewhere in the contract, the sustainable products and services that apply to the acquisition).

(xviii)

(A) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 67) (Applies to contracts for supplies, and to contracts for services involving the furnishing of supplies, for use in the United States or its outlying areas, if the value of the supply contract or supply portion of a service contract exceeds the micro-purchase threshold, as defined in [2.101](#) on the date of award of this contract, and the acquisition-

(1) Is set aside for small business concerns; or

(2) Cannot be set aside for small business concerns (see [19.502-2](#)), and does not exceed \$50,000).

(B) *Alternate I* (OCT 2022) (Applies if the Contracting Officer has filled in the domestic content threshold below, which will apply to the entire contract period of performance. Substitute the following sentence for the first sentence of paragraph (1)(ii)(A) of the definition of *domestic end product* in paragraph (a) of [52.225-1](#): (A) The cost of its components mined, produced, or manufactured in the United States exceeds ____ percent of the cost of all its components.

[*Contracting officer to insert the percentage per instructions at [13.302-5\(d\)\(4\)](#).]*

(xix) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations., Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792) (Applies to contracts greater than the threshold specified in FAR [26.404](#) on the date of award of this contract, that provide for the provision, the service, or the sale of food in the United States).

(xx) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct 2013)(Applies when the payment will be made by electronic funds transfer (EFT) and the payment office uses the System for Award Management (SAM) as its source of EFT information).

(xxi) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (Applies when the payment will be made by EFT and the payment office does not use the SAM database as its source of EFT information).

(xxii) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxiii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#))(Applies to supplies transported by ocean vessels (except for the types of subcontracts listed at [47.504\(d\)](#)).

(xxiv) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)). (Applies to contracts with a U.S.-flag carrier for the transportation by air of passengers; does not apply to contracts awarded by the Department of Defense or contracts for commercial products).

(2) Listed below are additional clauses that may apply:

(i) [52.204-21](#), Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) (Applies to contracts when the contractor or a subcontractor at any tier may have Federal contract information residing in or transiting through its information system.)

(ii) [52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (Applies to contracts over the threshold specified in FAR [9.405-2\(b\)](#) on the date of award of this contract).

(iii) [52.211-17](#), Delivery of Excess Quantities (Sept 1989) (Applies to fixed-price supplies).

(iv) [52.247-29](#), F.o.b. Origin (Feb 2006) (Applies to supplies if delivery is f.o.b. origin).

(v) [52.247-34](#), F.o.b. Destination (Jan 1991) (Applies to supplies if delivery is f.o.b. destination).

(c) *FAR 52.252-2, Clauses Incorporated by Reference (Feb 1998)*. This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

[Insert one or more Internet addresses]

(d) *Inspection/Acceptance*. The Contractor shall tender for acceptance only those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. The Government must exercise its postacceptance rights-

(1) Within a reasonable period of time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(e) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence, such as acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(f) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges that the Contractor can demonstrate to the satisfaction of the Government, using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(g) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(h) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(End of clause)

I.3 52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from _____ through _____ (insert dates).
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered “issued” when –
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or
 - (3) If sent electronically, the Government either –
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor’s email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum Order. When the Government requires supplies or services covered by this contract in an amount of less than \$5,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum Order. The Contractor is not obligated to honor--
 - (1) Any order for a single item in excess of \$345,000;
 - (2) Any order for a combination of items in excess of \$345,000; or
 - (3) A series of orders from the same ordering office within three (3) working days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.
- (c) If this is a requirements contract (i.e., includes the Requirement clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.
- (d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering

office within three (3) working days after issuance, with written notice stating the contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

I.5. 52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Deliver-Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after one year beyond the contract's effective period.

(End of clause)

I.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

(End of clause)

I.7 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed one (1) year.

(End of clause)

I.8 RESERVED

I.9 RESERVED

I.10 FAR 52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (FEB 2021)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

- (i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and
- (ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue.

(f) Taxes imposed under 26 U.S.C. 5000C may not be—

- (1) Included in the contract price; nor
- (2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

I.11 FAR 52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR. (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

DEPARTMENT OF STATE ACQUISITION REGULATION (DOSAR) CLAUSES

I.12 CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- (1) Use an e-mail signature block that shows name, the office being supported and company affiliation (e.g. "John Smith, Office of Human Resources, ACME Corporation Support Contractor");
- (2) Clearly identify themselves and their contractor affiliation in meetings;
- (3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- (4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of Clause)

I.13 DOSAR 652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD ISSUANCE PROCEDURES (MAY 2011)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Issuance Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities, or information systems. The Contractor shall insert this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities, or information systems.

(b) The DOS Personal Identification Card Issuance Procedures may be accessed at <http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

I.14 DOSAR 652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

- (1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and
- (2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

I.15 DOSAR 652.216-70 ORDERING - INDEFINITE-DELIVERY CONTRACT (APR 2004)

The Government shall use one of the following forms to issue orders under this contract:

(a) The Optional Form 347, *Order for Supplies or Services*, and Optional Form 348, *Order for Supplies or Services Schedule - Continuation*; or,

(b) The DS-2076, *Purchase Order, Receiving Report and Voucher*, and DS-2077, *Continuation Sheet*.

(End of clause)

I.16 DOSAR 652.225-71 SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979, AS AMENDED (AUG 1999)

(a) Section 8(a) of the U.S. Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits compliance by U.S. persons with any boycott fostered by a foreign country against a country which is friendly to the United States and which is not itself the object of any form of boycott pursuant to United States law or regulation. The Boycott of Israel by Arab League countries is such a boycott, and therefore, the following actions, if taken with intent to comply with, further, or support the Arab League Boycott of Israel, are prohibited activities under the Export Administration Act:

- (1) Refusing, or requiring any U.S. person to refuse to do business with or in Israel, with any Israeli business concern, or with any national or resident of Israel, or with any other person, pursuant to an agreement of, or a request from or on behalf of a boycotting country;
- (2) Refusing, or requiring any U.S. person to refuse to employ or otherwise discriminating against any person on the basis of race, religion, sex, or national origin of that person or of any owner, officer, director, or employee of such person;
- (3) Furnishing information with respect to the race, religion, or national origin of any U.S. person or of any owner, officer, director, or employee of such U.S. person;
- (4) Furnishing information about whether any person has, has had, or proposes to have any business relationship (including a relationship by way of sale, purchase, legal or commercial representation, shipping or other transport, insurance, investment, or supply) with or in the State of Israel, with any business concern organized
- (5) under the laws of the State of Israel, with any Israeli national or resident, or with any person which is known or believed to be restricted from having any business relationship with or in Israel;
- (6) Furnishing information about whether any person is a member of, has made contributions to, or is otherwise associated with or involved in the activities of any charitable or fraternal organization which supports the State of Israel; and,
- (7) Paying, honoring, confirming, or otherwise implementing a letter of credit which contains any condition or requirement against doing business with the State of Israel.

(b) Under Section 8(a), the following types of activities are not forbidden "compliance with the boycott," and are therefore exempted from Section 8(a)'s prohibitions listed in paragraphs (a)(1)-(6) above:

- (1) Complying or agreeing to comply with requirements:

- (i) Prohibiting the import of goods or services from Israel or goods produced or services provided by any business concern organized under the laws of Israel or by nationals or residents of Israel; or,
 - (ii) Prohibiting the shipment of goods to Israel on a carrier of Israel, or by a route other than that prescribed by the boycotting country or the recipient of the shipment;
- (2) Complying or agreeing to comply with import and shipping document requirements with respect to the country of origin, the name of the carrier and route of shipment, the name of the supplier of the shipment or the name of the provider of other services, except that no information knowingly furnished or conveyed in response to such requirements may be stated in negative, blacklisting, or similar exclusionary terms, other than with respect to carriers or route of shipments as may be permitted by such regulations in order to comply with precautionary requirements protecting against war risks and confiscation;
- (3) Complying or agreeing to comply in the normal course of business with the unilateral and specific selection by a boycotting country, or national or resident thereof, of carriers, insurance, suppliers of services to be performed within the boycotting country or specific goods which, in the normal course of business, are identifiable by source when imported into the boycotting country;
- (4) Complying or agreeing to comply with the export requirements of the boycotting country relating to shipments or transshipments of exports to Israel, to any business concern of or organized under the laws of Israel, or to any national or resident of Israel;
- (5) Compliance by an individual or agreement by an individual to comply with the immigration or passport requirements of any country with respect to such individual or any member of such individual's family or with requests for information regarding requirements of employment of such individual within the boycotting country; and,
- (6) Compliance by a U.S. person resident in a foreign country or agreement by such person to comply with the laws of that country with respect to his or her activities exclusively therein, and such regulations may contain exceptions for such resident complying with the laws or regulations of that foreign country governing imports into such country of trademarked, trade named, or similarly specifically identifiable products, or components of products for his or her own use, including the performance of contractual services within that country, as may be defined by such regulations.

(End of clause)

I.17 652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JULY 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

I.18 DOSAR 652.229-71 PERSONAL PROPERTY DISPOSITION AT POSTS ABROAD (AUG 1999)

(a) The Contractor warrants the following:

- (1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
- (2) That it has obtained all necessary licenses and permits required to perform this contract; and,
- (3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

I.19 DOSAR 652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days*as holidays:

(Note: Due to changes in observance of Japanese holidays each year, the holidays listed below are for reference only.)

U.S. Federal Holidays;

New Year's Day (1st January) **

Martin Luther King's Birthday (Third Monday in January)

Washington's Birthday (Third Monday in February)

Memorial Day (Last Monday in May)

Juneteenth (19th June)

Independence Day (4th July)

Labor Day (First Monday in September)

Columbus Day (Second Monday in October)

Veterans Day (11th November)

Thanksgiving Day (Fourth Thursday in November)

Christmas Day (25th December)

Japanese National Holidays;

New Year's Day or Ganjitsu (1st January) **

Adult's Day or Seijin-no-hi (Second Monday in January)

National Foundation Day or Kenkoku Kinen-no-hi (11th February)

Emperor's Birthday or Tennou Tanjou-bi (23rd February)

Spring Vernal Equinox Day or Shunbun-no-hi (21st March)

Showa-no-hi (29th April)

Constitution Day or Kenpou Kinen-bi (3rd May)

Greenery Day or Midori-no-hi (4th May)

Children's Day or Kodomo-no-hi (5th May)

Marine Day or Umi-no-hi (Third Monday in July)

Mountain Day or Yama-no-hi (12th August)

Respect for the Aged Day or Keirou-no-hi (Third Monday in September)

Autumn Vernal equinox Day or Shuubun-no-hi (23rd September)

Sports Day or Supotsu-no-hi (Second Monday in October)

Culture Day or Bunka-no-hi (3rd November)

Labor Thanksgiving Day or Kinrou Kanshya-no-hi (23rd November)

*Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

**Day that holiday overlaps in both countries.

(b) When any such day falls on a Saturday or Sunday, the following Monday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the Contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the Contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the Contracting Officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

- (1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.
- (2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the Contracting Officer to ensure that the Contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the Contractor. The cost of salaries and wages to the Contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the Contractor's accounting policy.

(End of clause)

I.20 DOSAR 652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

- (1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
- (2) That it has obtained all necessary licenses and permits required to perform this contract; and,
- (3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

I.21 DOSAR 652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

(End of clause)

SECTION J - LIST OF ATTACHMENTS, EXHIBITS AND OTHER ATTACHMENTS

Exhibit J-1 - SAMPLE TASK ORDER FORM

Exhibit J-2 – Hazard Assessment Sheet

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF QUOTERS

K.1 FAR 52.203-2 CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to (i) those prices, (ii) the intention to submit an offer, or (iii) the methods or factors used to calculate the prices offered;

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory -

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to subparagraphs (a)(1) through (a)(3) above; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to subparagraphs (a)(1) through (a)(3) above

(insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization);

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) above have not participated, and will not participate, in any action contrary to subparagraphs (a)(1) through (a)(3) above; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to subparagraphs (a)(1) through (a)(3) above.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

K.2 FAR 52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEPT 2024)

(a) *Definitions.* As used in this provision-"Lobbying contact" has the meaning provided at [2 U.S.C. 1602\(8\)](#). The terms "agency," "influencing or attempting to influence," "officer or employee of an agency," "person," "reasonable compensation," and "regularly employed" are defined in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" ([52.203-12](#)).

(b) *Prohibition.* The prohibition and exceptions contained in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" ([52.203-12](#)) are hereby incorporated by reference in this provision.

(c) *Certification.* The offeror, by signing its offer, hereby certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on its behalf in connection with the awarding of this contract.

(d) *Disclosure.* If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(e) *Penalty.* Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by [31 U.S.C. 1352](#). Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure required to be filed or amended by this provision, shall be subject to civil penalties as provided in [31 U.S.C. 1352](#). An imposition of a civil penalty does not prevent the Government from seeking any other remedy that may be applicable.

(End of provision)

K.3 FAR 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017)

(a) *Definition.* As used in this provision-

Internal confidentiality agreement or statement, subcontract, and subcontractor , are defined in the clause at [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such

employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

K.4 FAR 52.204-3 TAXPAYER IDENTIFICATION (OCT 98)

(a) Definitions:

"Common parent", as used in this provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

"Taxpayer Identification Number (TIN)", as used in this provision, means the number required by the IRS to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.

(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision in order to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325 (d), reporting requirements of 26 USC 6041, 6041A, and 6050M and implementing regulations issued by the Internal Revenue Service (IRS). If the resulting contract is subject to the reporting requirements described in FAR 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 USC 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) Taxpayer Identification Number (TIN)

TIN: _____

___ TIN has been applied for.

___ TIN is not required because:

___ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the U.S. and does not have an office or place of business or a fiscal paying agent in the U.S.;

___ Offeror is an agency or instrumentality of a foreign government;

___ Offeror is an agency or instrumentality of the Federal Government.

(e) Type of Organization

- ☐ Sole Proprietorship;
☐ Partnership;
☐ Corporate Entity (not tax exempt);
☐ Corporate Entity (tax exempt);
☐ Government Entity (Federal, State, or local);
☐ Foreign Government;
☐ International Organization per 26 CFR 1.6049-4;
☐ Other _____

(f) Common Parent

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this clause.

☐ Name and TIN of common parent;

Name: _____

TIN: _____

(End of provision)

K.5 FAR 52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2026)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 2383.

(2) The small business size standard is \$19.0M.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—

- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at [52.204-7](#), System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at [52.204-7](#), System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- (i) ☐ Paragraph (d) applies.
- (ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

- (i) [52.203-2](#), Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—
 - (A) The acquisition is to be made under the simplified acquisition procedures in [part 13](#);
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) [52.203-11](#), Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) [52.203-18](#), Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) [52.204-3](#), Taxpayer Identification. This provision applies to solicitations that do not include the provision at [52.204-7](#), System for Award Management.
- (v) [52.204-5](#), Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) [52.204-26](#), Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) [52.209-2](#), Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) [52.209-5](#), Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) [52.209-11](#), Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) [52.214-14](#), Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) [52.215-6](#), Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) [52.219-1](#), Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) [52.219-2](#), Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).

(xiv) [52.222-22](#), Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at [52.222-26](#), Equal Opportunity.

(xv) [52.222-25](#), Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at [52.222-26](#), Equal Opportunity.

(xvi) [52.222-38](#), Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) [52.223-1](#), Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at [52.223-2](#), Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) [52.223-4](#), Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) Reserved

(xx) [52.225-2](#), Buy American Certificate. This provision applies to solicitations containing the clause at [52.225-1](#).

(xxi) [52.225-4](#), Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at [52.225-3](#).

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$105,767, the provision with its Alternate III applies.

(xxii) [52.225-6](#), Trade Agreements Certificate. This provision applies to solicitations containing the clause at [52.225-5](#).

(xxiii) [52.225-20](#), Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) [52.225-25](#), Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) [52.226-2](#), Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

- ___ (i) [52.204-17](#), Ownership or Control of Offeror.
- ___ (ii) [52.204-20](#), Predecessor of Offeror.
- ___ (iii) [52.222-18](#), Certification Regarding Knowledge of Child Labor for Listed End Products.
- ___ (iv) [52.222-48](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ___ (v) [52.222-52](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ___ (vi) [52.227-6](#), Royalty Information.
 - ___ (A) Basic.
 - ___ (B) Alternate I.
- ___ (vii) [52.227-15](#), Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR [4.1201](#)); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Alternate I (Mar 2023). As prescribed in [4.1202\(a\)](#) , substitute the following paragraph (a) for paragraph (a) of the basic provision:

(a)

(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size Standard

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce, (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(End of provision)

K.6 FAR 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ___ will, ___ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ___ does, ___ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services.

The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K.7 FAR 52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ___ does, ___ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ___ does, ___ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

K.8. FAR 52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS' REPRESENTATION (NOV 2015)

(a) *Definitions.* "Inverted domestic corporation" and "subsidiary" have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations ([52.209-10](#)).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(c) Representation. The Offeror represents that.

- (1) It ___ is, ___ is not an inverted domestic corporation; and
- (2) It ___ is, ___ is not a subsidiary of an inverted domestic corporation.

(End of provision)

K.9 FAR 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ___ are not ___ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ___ have not ___, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see [52.209-7](#), if included in this solicitation);

(C) Are ___ are not ___ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ___, have not ___, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) *Examples.*

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court

review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under [11 U.S.C. 362](#) (the Bankruptcy Code).

(ii) The Offeror has ___ has not ___, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions). This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

K.10 FAR 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION. (NOV 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation [2.101](#).

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

- (i) Waived application under [22 U.S.C. 2593e](#)(d) or (e); or
- (ii) Determined under [22 U.S.C. 2593e](#)(g)(2) that the entity has ceased all activities for which measures were imposed under [22 U.S.C. 2593e](#)(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K.11 FAR 52.225-18 PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision—

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;

- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

- (1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ Outside the United States.

(End of provision)

K.12 AUTHORIZED CONTRACT ADMINISTRATOR

If the quoter does not fill-in the blanks below, the official who signed the quote will be deemed to be the quoter's representative for Contract Administration, which includes all matters pertaining to payments.

Name: _____
 Address: _____
 Telephone Number: _____ Fax Number: _____

(End of provision)

K.13 FAR 52.225-20 PROHIBITION ON CONDUCTING RESTRICTED BUSINESS OPERATIONS IN SUDAN—CERTIFICATION (AUG 2009)

(a) *Definitions.* As used in this provision-

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means-

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) ([50 U.S.C. 1701](#) note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is

defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

(b) *Certification.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(End of provision)

K.14 DOSAR 652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:

Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

- (1) Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,
- (2) Discriminating in the award of subcontracts on the basis of religion.

(End of provision)

K.15 AUTHORIZED CONTRACT ADMINISTRATOR

If the offeror does not fill-in the blanks below, the official who signed the offer will be deemed to be the offeror's representative for contract administration, which includes all matters pertaining to payments.

Name:	
Address:	
Telephone Number:	

K.16 FAR 52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in [26 U.S.C. 7701\(a\)\(30\)](#) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 701\(a\)\(31\)](#)); and
- (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under [26 U.S.C. 5000C](#), the Offeror represents that

- (1) It ___ is ___ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.
- (e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—
- (1) The clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.
- (f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, in any resulting contract.
- (g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

K.17 THE FOLLOWING PROVISION IS INCORPORATED BY REFERENCE:

FAR 52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN—REPRESENTATION AND CERTIFICATIONS (JUN 2020)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://e-cfr.gov) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION PROVISIONS ARE INCORPORATED BY REFERENCE (48 CFR CH. 1):

<u>PROVISION</u>	<u>TITLE AND DATE</u>
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52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)
52.214-34	SUBMISSION OF OFFERS IN ENGLISH LANGUAGE (APR 1991)
52.215-1	INSTRUCTIONS TO OFFERORS— COMPETITIVE ACQUISITION (NOV 2021)
52.236-28	PREPARATION OF PROPOSALS - CONSTRUCTION (OCT 1997)
52.237-1	SITE VISIT (APR 1984)

L.2 SOLICITATION PROVISIONS IN FULL TEXT

FAR 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of firm-fixed price contract resulting from this solicitation.

(End of provision)

FAR 52.233-2 SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from the Contracting Officer at the U.S. Embassy in Tokyo, Japan.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.3 REVIEW OF DOCUMENTS

Each Quoter is responsible for:

- (1) Obtaining a complete set of contract drawings and specifications;
- (2) Thoroughly reviewing such documents and understanding their requirements;
- (3) Visiting the project site and becoming familiar with all working conditions, local laws and regulations; and
- (4) Determining that all materials, equipment and labor required for the work are available.

Quoters shall report any ambiguity in the solicitation, including specifications and contract drawings immediately to the Contracting Officer. Any prospective Quoter who requires a clarification, explanation or interpretation of the contract requirements shall make a request to the Contracting Officer not less than five working days before the closing date of the solicitation. Quoters may rely ONLY on written interpretations by the Contracting Officer.

L.4 SUBMISSION OF QUOTATIONS

L.4.1 GENERAL

This solicitation is for the performance of the bathroom restoration services described in SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT, and the Attachments and Exhibits that are a part of this solicitation.

L.4.2 SUMMARY OF INSTRUCTIONS

Each quotation must consist of one original of the following:

(a) Volume 1 – Standard Form (SF) 1442, “Solicitation, Offer, and Award (Construction, Alteration, or Repair) .

Volume 1 shall consist of completion of blocks 14 through 20C of SF-1442 (page 1&2).

(b) Volume 2 – SECTION B: Supplies or Services and Prices/Costs.

Volume 2 shall consist of completion of SUBSECTION B.3.3 PRICES (page 4-6). All blocks shall be completed. Quoters shall include the currency which they are submitting their prices in.

(c) Volume 3 – SECTION K: Representations and Certifications.

Volume 3 shall consist of completion of SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF QUOTERS (pages 73 through 94) (Complete all portions that are applicable and submit whole pages of Section K).

(d) Volume 4 – Business Management/Technical Proposal.

Volume 4 shall consist of information demonstrating the Quoter’s ability to perform, including:

- (1) Name of the proposed Quoter's designated representative for this project who understands written/spoken English and Japanese (See Subsection C.1.2.DESIGNATED REPRESENTATIVE.).

- (2) Address, telephone number, and number of employees of an quoter's company in Japan.
- (3) A list of the names, addresses, and telephone numbers of subcontractors and principal material suppliers to be used on the project, indicating what portions of the work will be performed by them.
- (4) Evidence that the Quoter operates an established business with a permanent address and telephone listing in Japan, such as Certification of All Historical Matters (RIREKI JIKO ZENBU SHOMEISHO - 履歴事項全部証明書) and/or company profile (KAISHA GAIYO - 会社概要) with history (ENKAKU - 沿革) with information listed as follows:
- a. Company Name
 - b. Name of Representative
 - c. Company's established year
 - d. Address
 - e. Webpage address

(5) Business Content (JIGYO NAIYO - 事業内容)

(6) Experience and Past Performance;

A list of contracts and subcontracts the Quoter has held over the past five (5) years for the same or similar work in Japan. If the Quoter has not performed comparable services in Japan, then the Quoter shall provide its international experience. Provide minimum three (3) projects and no more than five (5) projects. Provide the following information for each contract and subcontract:

- (a) Customer's name, address, and email address and telephone number of customer's lead contract and technical personnel;
- (b) Contract name, contract number and type;
- (c) Date of the contract award, place(s) of performance, and completion dates; contract dollar value;
- (d) Brief description of the work, including responsibilities; and
- (e) Any litigation / termination (partial or complete) and the reason (convenience or default) currently in process or occurring within last 5 years.

Quoters are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the Quoter's:

- Quality of services provided under the contract;
- Compliance with contract terms and conditions;
- Effectiveness of management;
- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and

- Business integrity / business conduct.

The Government will use past performance information primarily to assess a Quoter's capability to meet the solicitation performance requirements, including the relevance and successful performance of the Quoter's work experience. The Government may also use this data to evaluate the credibility of the Quoter's submission. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

(7) Evidence that the Quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;

(8) Licenses and Permits; and

The Quoter and its subcontractors (if any) shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in SECTION I). If the Quoter and its subcontractors (if any) already possess the locally required licenses and permits, a copy shall be provided.

(9) Model Work Plan

The Quoter shall submit the following:

(a) Identify types and quantities of equipment, supplies and materials required for performance of services for each price option category listed in the Price (Subsection B.3.3) under this contract. Indicate if the quoter already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;

(c) A plan to ensure quality of services including but not limited to contract administration and oversight; and

(10) A copy of the Certificate of Insurance(s) **or** a statement that the Quoter will obtain the required insurance, and the name of the insurance provider to be used.

Quotations are due by **11:00 a.m., Tuesday, April 14, 2026 (Japan Standard Time)**. No quotations will be accepted after the specified date/time. Quotations must be in English and incomplete quotations will not be accepted.

Your quotation must be submitted electronically to Miyuki Mita via email to MitaMX@state.gov. The e-mail size must not exceed 15MB. If the e-mail size should exceed the 15MB, the submission must be made in separate e-mails less than 15MB each.

After submission of quotation, quoters shall contact Miyuki Mita by phone (Office: 03-3224-5755 or Mobile: 090-1110-9320) or email to confirm the receipt of quotation.

Quoters shall identify, explain and justify any deviations, exceptions, or conditional assumptions taken regarding any of the instructions or requirements of this solicitation in the appropriate volume of the quotation.

L.4.3 LATE QUOTATIONS

Late quotations shall be handled in accordance with FAR.

L.5 FAR 52.236-27 SITE VISIT (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) An organized site visit has been scheduled on **Tuesday, March 31, 2026, from 10:00 a.m. to on/about 12:00 p.m. (Japan Standard Time).**

(c) Participants shall meet at **9:50 a.m.**, in front of the **West Gate** (previously known as Shirota Gordon Gate) of the Embassy housing compound, locating at 2-1-1 Roppongi, Minato-ku, Tokyo.

(d) Prospective quoters shall contact Miyuki Mita via email at MitaMX@sate.gov by **3:00 p.m., Friday, March 27, 2026 (JST)** and submit individual name(s), company name/address, telephone/fax numbers, and email address.

L.6 PRE-QUOTATION CONFERENCE

A pre-quotation conference to discuss the requirements of this solicitation will be held on **Tuesday, March 31, 2026, from 10:00 a.m. to on/about 12:00 p.m. (JST) at Mitsui Housing Compound** of the U.S. Embassy Tokyo, locating at 2-1-1 Roppongi, Minato-ku, Tokyo, Japan.

Quoters are urged to submit written questions using the address provided on the solicitation cover page of this solicitation. Attendees should bring written questions to the conference as well. As time permits and after the Embassy discusses the solicitation and written questions are answered, oral questions may be taken.

L.7 DOSAR 652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/LM/AQM) or a Regional Procurement Support Office, the A/LM/AQM Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality

as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, Minister-Counselor for Management Affairs, at Tel: 03-3224-5585 or Fax: 03-3224-5303. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of the Procurement Executive (A/OPE), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

L.8 MAGNITUDE OF CONSTRUCTION PROJECT

It is anticipated that the range in price of this contract will be: Between \$25,000 and \$500,000.

L.9 FINANCIAL STATEMENT

If asked by the Contracting Officer, the offeror shall provide a current statement of its financial condition, certified by a third party, that includes:

Income (profit-loss) Statement that shows profitability for the past three years;

Balance Sheet that shows the assets owned and the claims against those assets, or what a firm owns and what it owes; and

Cash Flow Statement that shows the firm's sources and uses of cash during the most recent accounting period. This will help the Government assess a firm's ability to pay its obligations.

The U.S. Government will use this information to determine the offeror's financial responsibility and ability to perform under the contract. Failure of an offeror to comply with a request for this information may cause the Government to determine the offeror to be non-responsible.

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 EVALUATION OF QUOTATIONS

M.1.1. GENERAL.

To be acceptable and eligible for evaluation, quotations must be prepared following SECTION L and must meet all the requirements in the other sections of this solicitation.

M.1.2. BASIS FOR AWARD

The Government intends to award a contract resulting from this solicitation to the lowest priced, technically acceptable quoter who is a responsible contractor. The evaluation process will follow the procedures below:

(a) Initial Evaluation

The Government will evaluate all quotations received. Quotes shall include a completed solicitation. The U.S. Government will evaluate all quotations received to ensure that each quotation is complete in terms of submission of each required volume, as specified in SUBSECTION L.4.2 SUMMARY OF INSTRUCTIONS. The U.S. Government may eliminate quotations that are missing a significant amount of the required information.

(b) Technical Acceptability

After the initial evaluation, the Government will review the remaining proposals to determine technical acceptability. Technical acceptability will include a review of the Proposed Work Information described in SECTION L to ensure that the quoter's submission is acceptable to the Government. The Government may also contact references provided as part of the Experience and Past Performance information described in SECTION L to verify quality of past performance. The end result of this review will be a determination of technical acceptability or unacceptability.

(c) Responsibility Determination

The U.S. Government will determine acceptability by assessing the quoter's compliance with the terms of the RFQ. The Government will determine responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

- (1) Adequate financial resources or the ability to obtain them;
- (2) Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
- (3) Satisfactory record of integrity and business ethics;
- (4) Necessary organization, experience, and skills or the ability to obtain them;
- (5) Necessary equipment and facilities or the ability to obtain them; and
- (6) Otherwise qualified and eligible to receive an award under applicable laws and regulations.

The Government reserves the right to reject proposals that are unreasonably low or high in price. Unsuccessful quoters will be notified in accordance with FAR 15.503.

M.1.3 AWARD SELECTION

The Government will review the prices of all technically acceptable firms and the award selection will go to the lowest priced, technically acceptable, responsible offeror. As described in FAR

52.215-1, incorporated by reference in SECTION L, the Government may award may based on initial offers, without discussions.

FAR 52.217-5 EVALUATION OF OPTIONS (JULY 1990)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

M.2 QUANTITIES FOR EVALUATION

For the purpose of evaluation, and for no other purpose, evaluation of prices submitted will be made on the basis that the Government will require the quantities shown in Section B of this solicitation.

M.3 SEPARATE CHARGES

Separate charges, in any form, are not solicited. For example, proposals containing any charges for failure of the Government to exercise any options will be rejected. The Government shall not be obligated to pay any charges other than the contract price, including any exercised options.

M.4 FAR 52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
- (b) For acquisitions conducted using negotiation procedures—
 - (1) On the date specified for receipt of offers, if award is based on initial offers; otherwise
 - (2) On the date specified for receipt of proposal revisions.

(End of provision)

Exhibit J-1 - Sample Task Order Form

ORDER FOR SUPPLIES OR SERVICES					PAGE	OF	PAGES
IMPORTANT: Mark all packages and papers with contract and/or order numbers.					1		
1. DATE OF ORDER (to be determined)		2. CONTRACT NO. (If any) (to be determined)		6. SHIP TO:			
3. ORDER NO.		4. REQUISITION/REFERENCE NO.		a. NAME OF CONSIGNEE U.S. Embassy			
5. ISSUING OFFICE (Address correspondence to) U.S. Embassy				b. STREET ADDRESS 1-10-5 Akasaka			
				c. CITY Minato-ku, Tokyo	d. STATE	e. ZIP CODE 107-8420	
7. TO:				f. SHIP VIA			
a. NAME OF CONTRACTOR (to be determined)				8. TYPE OF ORDER			
b. COMPANY NAME				☒ a. PURCHASE REF YOUR: _____ Please furnish the following on the terms And conditions specified on both sides of This order and on the attached sheet, if Any, including delivery as indicated.			☐ b. DELIVERY -- Except for billing instructions on the reverse, this delivery order is subject to instructions contained on this side only of this form and is issued subject to the terms and conditions of the above-numbered contract.
c. STREET ADDRESS							
d. CITY	e. STATE	f. ZIP CODE					
9. ACCOUNTING AND APPROPRIATION DATA Funds will be obligated at the time an order is placed.				10. REQUISITIONING OFFICE Facility Management Office			
11. BUSINESS CLASSIFICATION (Check appropriate box(es))							
☐ a. SMALL ☐ b. OTHER THAN SMALL ☐ c. DISADVANTAGED ☐ d. WOMEN-OWNED							
12. F.O.B. POINT Destination		14. GOVERNMENT B/L NO. n/a		15. DELIVER TO F.O.B. POINT ON OR BEFORE (Date) Indefinite		16. DISCOUNT TERMS Net 30	
13. PLACE OF							
a. INSPECTION See Block 6.	b. ACCEPTANCE See Block 6.						
17. SCHEDULE (See reverse for Rejections)							
ITEM NO. (a)	SUPPLIES OR SERVICES (b)		QUANTITY ORDERED (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)	QUANTITY ACCEPTED (g)
	Task Order Pursuant to the authority of FAR 52.216-18 Ordering, the Contractor shall perform Bathroom Restoration services for the following location(s) in accordance with terms and conditions of the contract, effective the start of performance through the completion and final acceptance of the work: (to be determined)						
SEE BILLING INSTRUCTIONS ON REVERSE	18. SHIPPING POINT		19. GROSS SHIPPING WEIGHT		20. INVOICE NO.		17(h) TOT. ← (Cont. pages)
	21. MAIL INVOICE TO:						
	a. NAME Financial Management Officer						17(i) ← GRAND TOTAL
	b. STREET ADDRESS (or P.O. Box) 1-10-5 Akasaka						
	c. CITY Minato-ku, Tokyo		d. STATE	e. ZIP CODE 107-8420			
22. UNITED STATES OF AMERICA BY (Signature)				23. NAME (Name of Contracting Officer) TITLE: CONTRACTING/ORDERING OFFICER			

Project:
Scheduled Start Date:
Scheduled Completion Date:

Determine Significant Hazards

Safety Hazards - hazards caused by equipment, unsafe working conditions or work practices.

- | | |
|--|--|
| ☐ abrasive wheels | ☐ people carriers |
| ☐ animal attacks | ☐ power and hand tools/equipment |
| ☐ battery charging | ☐ rotating equipment |
| ☐ confined spaces | ☐ scaffolds |
| ☐ cranes/hoists | ☐ slippery walking and working Surfaces |
| ☐ electrical hazards | ☐ storage areas/warehouses |
| ☐ forklifts | ☐ underground work |
| ☐ inadequate housekeeping | ☐ vehicle hazards |
| ☐ inadequate machine guarding | ☐ violence (eg. unlit parking lots) |
| ☐ ladders or personnel lifts | ☐ working with the public |
| ☐ material handling systems | |
| ☐ others. List them | |

Physical Hazards

- | | |
|---|---|
| ☐ electricity | ☐ lasers |
| ☐ lighting | ☐ noise pressure radiation |
| ☐ temperature extremes | ☐ vibration |
| ☐ x-rays | |
| ☐ others. List them. | |

Chemical Hazards

- | | |
|---|--|
| ☐ acrylonitrile | ☐ fire/explosions |
| ☐ anesthetic gases | ☐ isocyanates |
| ☐ arsenic | ☐ lead |
| ☐ benzene | ☐ mercury |
| ☐ cancer causing agents | ☐ personal protective equipment |
| ☐ cleaning products/detergents | ☐ silica |
| ☐ coke oven emissions | ☐ solvents |
| ☐ compressed gases | ☐ vapors |
| ☐ disinfectants/antiseptics | ☐ vinyl chloride |
| ☐ drugs | ☐ wastes |
| ☐ ethylene oxide | |
| ☐ others. List them | |

Biological Hazards

- | | |
|--|------------------------------------|
| ☐ allergies | ☐ insects |
| ☐ animal bites | ☐ parasites |
| ☐ bacteria | ☐ plants |
| ☐ bird and bat feces | ☐ sunlight |
| ☐ bodily fluids | ☐ viruses |
| ☐ fungi (mould) | |
| ☐ human/animal waste | |
|
☐ others. List them | |

Ergonomic Hazards - hazards caused by anatomical, physiological, and psychological demands on the worker.

- | | |
|---|--|
| ☐ awkward postures | ☐ prolonged standing |
| ☐ manual material handling | ☐ repetitive work |
| ☐ pace of work | ☐ shift work |
| ☐ poorly designed equipment | ☐ using force |
| ☐ poorly designed tools | ☐ workload (overload/underload) |
| ☐ poorly designed workstations | ☐ work organization |
| ☐ prolonged sitting | |
|
☐ others. List them. | |

Do you put controls in place for the hazards you have identified?

☐ Yes ☐ No

If Yes, please list controls:

If No, please explain:

Your Name

Company Name

Date